

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

In the Matter of GEORGE P. ALESSIO, JR., Appellant, v PAUL G. CAREY, Respondent, et al., Respondents.

Submitted January 30, 2008; decided February 5, 2008

Reported below, 47 AD3d 1194, 1195, 1196.

Motion for leave to appeal granted. Motion for a stay granted.

[882 NE2d 394, 852 NYS2d 825]

In the Matter of DENNIS LaBOMBARD.

Decided February 7, 2008

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c) of whether Honorable Dennis LaBombard should be suspended from his office of Justice of the Ellenburg Town Court, Clinton County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

HEADNOTE

Judges — Suspension from Office

Upon consideration by the Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c) of whether a Town Justice should be suspended from office, it is determined that the Justice be suspended, with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable Dennis LaBombard is suspended, with pay, effective immediately, from the office of Justice of the Ellenburg Town

Court, Clinton County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[882 NE2d 873, 853 NYS2d 261]

KASHAWN YARBOROUGH, Appellant, v CITY OF NEW YORK, Respondent, et al., Defendant.

Argued January 2, 2008; decided February 7, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 18, 2006. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Kings County (Martin M. Solomon, J.), which had denied defendant City of New York's motion for summary judgment; (2) granted the motion; (3) dismissed the complaint insofar as asserted against the City of New York; and (4) severed the action against the remaining defendant.

Yarborough v City of New York, 28 AD3d 650, affirmed.

HEADNOTE

Municipal Corporations — Notice of Street Defect — Exception

In a personal injury action arising from plaintiff's trip and fall in a pothole allegedly repaired by the City in a negligent manner, the Appellate Division properly granted the City's summary judgment motion dismissing the complaint. The City lacked prior written notice of the dangerous condition, and plaintiff failed to raise a triable question of fact as to whether the City created a defective condition within the meaning of the prior written notice exception, which requires that the affirmative negligence of the City immediately result in the existence of the dangerous condition. Even assuming the City performed the negligent pothole repair, plaintiff's expert found that the deterioration of the asphalt patch, the condition that caused plaintiff's injury, developed over time with environmental wear and tear.

APPEARANCES OF COUNSEL

Pollack, Pollack, Isaac & De Cicco, New York City (Brian J. Isaac of counsel), and *Gary B. Pillersdorf and Associates, P.C.*, for appellant.

Michael A. Cardozo, Corporation Counsel, New York City (Fay Ng, Pamela Seider Dolgow and John Hogrogrian of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

The unfortunate accident in this case occurred when plaintiff Kashawn Yarborough tripped and fell in a pothole on a Brooklyn street. Plaintiff commenced this action against defendant City of New York to recover damages for his serious injuries. Following discovery, the City moved for summary judgment dismissing the complaint, asserting that it did not have prior written notice of the hazard as required by the Pothole Law (Administrative Code of City of NY § 7-201 [c] [2]). In support of its motion, the City submitted the deposition testimony of a City Department of Transportation employee who testified that no complaints or maintenance and repair records existed for the subject location for two years prior to and one year subsequent to the date of the incident. The City also proffered an affidavit from a City Department of Environmental Protection employee stating that no complaints or records existed for this location during the same time period.

In opposition, plaintiff conceded that the City lacked prior written notice of the pothole, but asserted that such notice was unnecessary because the City affirmatively created the defective condition. Based upon an examination of photographs taken shortly after the accident, one of plaintiff's expert engineers opined that patching repairs to the roadway prior to the accident were negligently undertaken, citing two deficiencies. First, the patching was not flush with the existing pavement, resulting in a difference in elevation between the two surfaces, which he referred to as a "secondary tripping hazard." He also concluded that a segment of the patching eroded—creating the pothole—because the patch was not tack coated with liquid asphalt, thereby allowing "water to enter the joint between the existing asphalt pavement and the patch, weakening the joint and the pavement subgrade and eventually resulting in a failure such as the one occurring here." The engineer further noted that "wear, tear and environmental factors hastened the deterioration of the pavement patch."

Supreme Court denied the City's motion, finding that a question of fact existed on the issue of whether the City was responsible for the defective condition. The Appellate Division reversed and dismissed the complaint, reasoning that plaintiff failed to submit evidence that the repair immediately created the hazardous condition that caused plaintiff's accident.

Where the City establishes that it lacked prior written notice under the Pothole Law, the burden shifts to the plaintiff to demonstrate the applicability of one of two recognized exceptions to the rule—that the municipality affirmatively created the defect through an act of negligence or that a special use resulted in a special benefit to the locality (*see Amabile v City of Buffalo*, 93 NY2d 471, 474 [1999]). Additionally, the affirmative negligence exception “is limited to work by the City that immediately results in the existence of a dangerous condition” (*Oboler v City of New York*, 8 NY3d 888, 889 [2007] [emphasis omitted], quoting *Bielecki v City of New York*, 14 AD3d 301 [1st Dept 2005]).

Here, plaintiff acknowledges that the City lacked prior written notice of the dangerous condition. We agree with the Appellate Division that the City was entitled to summary judgment because plaintiff failed to raise a triable question of fact as to whether the City created a defective condition within the meaning of the exception, which requires that the affirmative negligence of the City immediately result in the existence of a dangerous condition. Even assuming the City performed the negligent pothole repair, plaintiff’s expert found that the deterioration of the asphalt patch—the condition that caused plaintiff’s injury—developed over time with environmental wear and tear.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

[882 NE2d 394, 852 NYS2d 825]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALVARO CUMBERBATCH, Appellant.

Decided February 7, 2008

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered November 21, 2006. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Budd G. Goodman, J.), which had convicted defendant, upon his plea of guilty, of robbery in the first degree.

Defendant pleaded guilty to first-degree robbery in exchange for a sentence of nine years in prison. When defendant failed to appear for sentencing and was arrested on additional charges, Supreme Court imposed a sentence of 11 years in prison plus 5 years of postrelease supervision. In the Court of Appeals defendant argued that his plea should be invalidated as involuntary because Supreme Court failed to advise him during the plea discussion, plea colloquy or prior to imposing sentence that the negotiated disposition would include a mandatory period of postrelease supervision.

People v Cumberbatch, 36 AD3d 157, reversed.

HEADNOTE

Crimes — Plea of Guilty — Failure to Advise Defendant of Postrelease Supervision

In a criminal prosecution wherein defendant argued on appeal that his plea of guilty should be invalidated as involuntary based on the court's failure to advise him of the postrelease supervision component of the sentence during the plea discussion, plea colloquy or prior to imposing sentence, an Appellate Division order affirming the conviction was reversed, defendant's plea was vacated and the case was remitted to Supreme Court for further proceedings on the indictment (see *People v Louree*, 8 NY3d 541 [2007]).

APPEARANCES OF COUNSEL

Office of the Appellate Defender, New York City (*Margaret E. Knight*, *Richard M. Greenberg* and *Risa Gerson* of counsel), for appellant.

Robert M. Morgenthau, *District Attorney*, New York City (*Beth Fisch Cohen* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, defendant's plea vacated and case remitted to Supreme Court, New York County, for further proceedings on the indictment (see *People v Louree*, 8 NY3d 541 [2007]).

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of ADULT HOME AT ERIE STATION, INC., Respondent, v ASSESSOR AND BOARD OF ASSESSMENT REVIEW OF CITY OF MIDDLETOWN et al., Appellants.

Submitted February 4, 2008; decided February 7, 2008

Reported below, 36 AD3d 699.

Motion by New York State Assessor Association for leave to

file a brief amicus curiae on the appeal herein dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [a] [3]).

GARY W. CONKLIN, Appellant, v METRO NORTH COMMUTER RAILROAD COMPANY, Respondent.

Submitted December 17, 2007; decided February 7, 2008

Reported below, 45 AD3d 259.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of WOODROW FLEMMING, Appellant, v DENNIS BOYLE, as Justice of the Supreme Court of the State of New York, et al., Respondents.

Submitted December 10, 2007; decided February 7, 2008

Reported below, 45 AD3d 384.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied.

In the Matter of JOSEPH GUARINO, Appellant, v NEW YORK STATE RACING & WAGERING BOARD, Respondent.

Submitted December 17, 2007; decided February 7, 2008

Reported below, 45 AD3d 1096.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

KESSEL BRENT CORPORATION et al., Appellants, v BENDERSON PROPERTY DEVELOPMENT, INC., Respondent.

Submitted December 17, 2007; decided February 7, 2008

Reported below, 45 AD3d 1323.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

CHRISTOPHER A. MEASOM et al., Respondents, v GREENWICH AND PERRY STREET HOUSING CORPORATION, Appellant.

Submitted December 10, 2007; decided February 7, 2008

Reported below, 42 AD3d 366, 268 AD2d 156.

Motion for reargument of motion for leave to appeal denied [see 9 NY3d 946 (2007)].

In the Matter of PATRICIA E.K., Respondent, v EDWARD THOMAS K., JR., Appellant, and HEIDI K., Respondent.

Submitted December 10, 2007; decided February 7, 2008

Reported below, 45 AD3d 1335.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL MOORE, Appellant.

Submitted February 4, 2008; decided February 7, 2008

Reported below, 43 AD3d 1085.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MELVIN PINKSTON, Appellant.

Submitted January 14, 2008; decided February 7, 2008

Reported below, 39 AD3d 233.

Motion for an extension of the time within which to apply for

permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

DAVID S. PULTZ et al., Appellants, v CATHERINE ECONOMAKIS et al., Respondents.

Submitted January 14, 2008; decided February 7, 2008

Reported below, 40 AD3d 24.

Motion by City-wide Task Force on Housing Court et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of the Estate of ANTHONY S. SADOWSKI, JR., Deceased. MICHELE LIPPA GARTNER, Respondent; JOSEPH A.F. SADOWSKI, Appellant.

Submitted December 24, 2007; decided February 7, 2008

Reported below, 2007 NY Slip Op 71127(U), 76500(U).

Motion for reargument of motion for leave to appeal denied [*see* 9 NY3d 987 (2007)].

MIGUEL SUMBA, Plaintiff, v CLERMONT PARK ASSOCIATES, LLC, Defendant and Third-Party Plaintiff-Appellant. CLERMONT PARK RESIDENCE LLC, Third-Party Defendant-Respondent.

Submitted December 24, 2007; decided February 7, 2008

Reported below, 45 AD3d 671.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

BENSAM SWAKEEN, Appellant, v NEW YORK CITY HEALTH AND HOSPITALS CORPORATION, Respondent.

Submitted November 13, 2007; decided February 7, 2008

Reported below, 39 AD3d 287.

Motion for reargument of motion for leave to appeal denied
[see 9 NY3d 809 (2007)].

TOMPKINS-SENECA-TIOGA SCHOOLS HEALTH INSURANCE COOPERATIVE, Respondent, v CANDOR CENTRAL SCHOOL DISTRICT, Appellant.

Submitted December 10, 2007; decided February 7, 2008

Reported below, 44 AD3d 1236.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2).

In the Matter of RAYMOND M. WEINSTEIN et al., Appellants, v CITY OF NEW YORK DEPARTMENT OF HOUSING PRESERVATION AND DEVELOPMENT et al., Respondents.

Submitted December 3, 2007; decided February 7, 2008

Reported below, 39 AD3d 764.

Motion for reargument of motion for leave to appeal denied
[see 9 NY3d 811 (2007)].

[883 NE2d 350, 853 NYS2d 526]

MARKKING SMALLS, Appellant-Respondent, v AJI INDUSTRIES, INC., et al., Respondents, and JAHKIM A. JENKINS et al., Respondents-Appellants.

Argued January 8, 2008; decided February 12, 2008

SUMMARY

APPEALS from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered February 22, 2007. The Appellate Division, with two Justices dissenting, (1) reversed, on the law, an order of the Supreme Court, Bronx County (Wilma Guzman, J.), which had denied the motion of defendants AJI Industries, Inc., Eastern Ecology Services, Inc. and Industrial Ecology Services, Inc. for summary

judgment dismissing the complaint; (2) granted the motion; and (3) dismissed the complaint as to these defendants.

Smalls v AJI Indus., Inc., 37 AD3d 324, reversed.

HEADNOTE

Motor Vehicles — Collision

In a personal injury action arising out of a one-automobile accident wherein the driver lost control of the automobile and struck defendants' parked dumpster, and plaintiff injured passenger alleged that defendants negligently maintained and unlawfully situated the dumpster by placing it on public roadways without any reflection tape, cones, triangles or other safety devices, Supreme Court's order, which had denied certain defendants' motion for summary judgment dismissing the complaint, was reinstated. Assuming that one of the moving defendants determined the dumpster's placement, they failed to demonstrate the absence of any material issues of fact by showing that the dumpster was located neither in a driving lane nor in the zebra-striped safety zone where parking was not permitted. The police officer's testimony defendants relied upon was equivocal in that the officer testified that the dumpster was positioned just four or five inches from the curb, but twice acknowledged that he could not recall whether the dumpster was parked in the safety zone.

APPEARANCES OF COUNSEL

Crasto & Associates, P.C., Howard Beach (*Carol L. Schlitt* and *Anthony C. Crasto* of counsel), for appellant-respondent.

Buratti, Kaplan, McCarthy & McCarthy, Yonkers (*John C. Buratti* and *Julie M. Sherwood* of counsel), for respondents-appellants.

Downing & Peck, P.C., New York City (*John M. Downing, Jr.*, of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the order of Supreme Court reinstated.

At 1:40 A.M. on December 14, 2001, Jahkim A. Jenkins, a novice driver, was operating a vehicle owned by his sister, Christchelle Smalls, when he misjudged a lefthand turn from Randall Avenue onto Zerega Avenue in New York City, lost control of the automobile, and struck a parked dumpster owned by AJI Industries, Inc. Markking Smalls, a passenger in the vehicle, allegedly suffered "serious injury" within the meaning of the No-Fault Law as a result (*see* Insurance Law § 5102 [d]).

Markking Smalls subsequently sued AJI, Jenkins and Christchelle Smalls to recover for noneconomic loss and such other damages as he might be entitled to under the no-fault

regime. As relevant to this appeal, he alleged that AJI “negligently maintain[ed] . . . [and] unlawfully situat[ed]” the dumpster “on public roadways” by “placing [it] on public roadways without any reflection tape, cones, triangles or other safety devices.” AJI moved for summary judgment dismissing the complaint. Supreme Court denied the motion, but the Appellate Division reversed, with two Justices dissenting.

“As we have stated frequently, the proponent of a summary judgment motion must make a prima facie showing of entitlement to judgment as a matter of law, tendering sufficient evidence to demonstrate the absence of any material issues of fact. *Failure to make such prima facie showing requires a denial of the motion, regardless of the sufficiency of the opposing papers*” (*Alvarez v Prospect Hosp.*, 68 NY2d 320, 324 [1986] [citations omitted and emphasis added]). In order to make out a prima facie case on its motion, AJI was required to show that the dumpster was located neither in a driving lane on Zerega Avenue nor in the zebra-striped safety zone where parking was not permitted. The testimony of the police officer relied upon by AJI, however, was equivocal. Although the officer testified that the dumpster was positioned just four or five inches from the curb, he twice acknowledged that he could not recall whether the dumpster was parked in the safety zone. Two other points bear emphasis. First, we assume for purposes of this appeal that AJI rather than a third party determined the dumpster’s placement. Second, whether the dumpster bore reflectors or was set off with cones or similar warning devices is not relevant in this case. If the dumpster was located in a parking lane there was no more need for warning lights or devices than there would have been for a vehicle parked in the same spot.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

[882 NE2d 885, 853 NYS2d 273]

WILFREDO ALEXIS CASTILLO, Respondent, v 711 GROUP, INC., Defendant and Third-Party Plaintiff-Respondent. 3-D LABORATORY, INC., Third-Party Defendant-Appellant.

Decided February 12, 2008

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the Second Judicial Department, from an or-

der of that Court, entered April 17, 2007. The Appellate Division (1) affirmed an order of the Supreme Court, Kings County (Ira B. Harkavy, J.), which, insofar as appealed from, had denied a motion by the third-party defendant employer for summary judgment dismissing the third-party complaint, and (2) upon searching the record, awarded plaintiff construction worker and defendant owner partial summary judgment on the issue of whether the plaintiff suffered a grave injury. The following question was certified by the Appellate Division: “Was the opinion and order of this court dated April 17, 2007, properly made?”

Castillo v 711 Group, Inc., 41 AD3d 77, affirmed.

HEADNOTE

Workers’ Compensation — Third-Party Action — Grave Injury

Plaintiff construction worker’s loss of both interphalangeal joints of his left index finger, leaving a “painful amputation stump” that required two corrective surgeries to desensitize, constituted the loss of an index finger, and thus a grave injury under Workers’ Compensation Law § 11.

APPEARANCES OF COUNSEL

Baxter, Smith, Tassan & Shapiro, P.C., Hicksville (*Sim R. Shapiro* of counsel), for third-party defendant-appellant.

Miller & Associates, P.C., New York City (*Scott E. Miller* of counsel), and *Jones Hirsch Connors & Bull, P.C.* (*Mark D. Wellman* of counsel), for third-party plaintiff-respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

Third-party defendant 3-D Laboratory, Inc. moved for summary judgment dismissing the third-party action against it, claiming the injuries plaintiff sustained to his left index finger did not qualify as a “grave injury” under Workers’ Compensation Law § 11. Supreme Court denied the motion. The Appellate Division affirmed the denial of the third-party defendant’s motion, but searched the record and awarded plaintiff and defendant/third-party plaintiff 711 Group, Inc. partial summary judgment on the issue whether plaintiff suffered a “grave injury” under Workers’ Compensation Law § 11. We affirm.

Workers’ Compensation Law § 11 expressly lists the “loss of an index finger” as a “grave injury.” Consistent with the principle that “[w]ords in a statute are to be given their plain meaning without resort to forced or unnatural interpretations,”

this Court has held that “the word ‘finger’ means the whole finger, not just its tip” (*Castro v United Container Mach. Group*, 96 NY2d 398, 401 [2001]).

Here, plaintiff demonstrated that he lost both interphalangeal joints of his left index finger, leaving a “painful amputation stump” that required two corrective surgeries to desensitize. Thus, plaintiff established that he suffered the “loss of an index finger” within the meaning of Workers’ Compensation Law § 11 (*cf. Montesana v Bernard Janowitz Constr. Corp.*, 36 AD3d 769, 770 [2d Dept 2007]; *Blackburn v Wysong & Miles Co.*, 11 AD3d 421, 422 [2d Dept 2004]; *McCoy v Queens Hydraulic Co.*, 286 AD2d 425, 425 [2d Dept 2001]).

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

In the Matter of SUSAN BABA, Appellant, v MARTIN EVANS et al.,
Respondents.

Submitted January 7, 2008; decided February 12, 2008

Reported below, 2007 NY Slip Op 73889(U).

Motion for reargument of motion for leave to appeal denied
[see 9 NY3d 970 (2007)].

In the Matter of the Claim of CECILIA CADORNIGA-DOEING, Appellant, v NSH/LONG ISLAND JEWISH HEALTH SYSTEM et al.,
Respondents. WORKERS’ COMPENSATION BOARD, Respondent.

Submitted December 31, 2007; decided February 12, 2008

Reported below, 41 AD3d 1132.

Motion for reargument of motion for leave to appeal denied
[see 9 NY3d 813 (2007)].

In the Matter of the COMMISSIONER OF SOCIAL SERVICES OF
ULSTER COUNTY, on Behalf of DIANN F. MONTGOMERY, Re-
spondent, v KENLEY POWELL, Appellant.

Submitted January 7, 2008; decided February 12, 2008

Reported below, 39 AD3d 946.

Motion for reargument of motion for leave to appeal denied [see 9 NY3d 975 (2007)].

ERIC GOLDFINE et al., Appellants, v MICHAEL SICHENZIA et al., Defendants, and OLD REPUBLIC NATIONAL TITLE INSURANCE COMPANY, Respondent.

Submitted December 3, 2007; decided February 12, 2008

Reported below, 43 AD3d 1108.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed so much of Supreme Court's March 2005 order as denied appellants' motion to amend the complaint, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of SHAWN GREEN, Appellant, v GLENN S. GOORD, as Commissioner of the New York State Department of Correctional Services, Respondent.

In the Matter of SHAWN GREEN, Appellant, v GLENN S. GOORD, as Commissioner of the New York State Department of Correctional Services, Respondent.

Submitted January 14, 2008; decided February 12, 2008

Reported below, 42 AD3d 966, 971; 2007 NY Slip Op 79836(U), 79837(U).

Motion for reargument of motions for leave to appeal denied [see 9 NY3d 999 (2007)].

In the Matter of JOHN A.J. HINSPETER, Appellant, v RORY J. BELLANTONI et al., Respondents.

Submitted December 24, 2007; decided February 12, 2008

Reported below, 2007 NY Slip Op 83370(U).

Motion for leave to appeal from the Appellate Division order denying appellant's motion to vacate dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution.

JAN LEIGHTON, Appellant, v YOUNG JA KIM LEIGHTON, Respondent.

Submitted January 14, 2008; decided February 12, 2008

Reported below, 46 AD3d 264.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of DORIS LUMPKIN, Appellant, v NEW YORK STATE DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted December 17, 2007; decided February 12, 2008

Reported below, 2007 NY Slip Op 82658(U).

Motion for leave to appeal dismissed upon the ground that the motion for leave to appeal to the Court of Appeals does not lie from the order of an individual Justice of the Appellate Division (*see* NY Const, art VI, § 3; CPLR 5602). Motion for poor person relief dismissed as academic.

ALISON R. MINTON, Appellant-Respondent, v THE WINGS CLUB, Respondent, and PHIL BAKES et al., Respondents-Appellants.

Submitted November 26, 2007; decided February 12, 2008

Reported below, 42 AD3d 345.

Motion by Alison R. Minton, insofar as it seeks leave to appeal as against Dan McKinnon and the Wings Club, dismissed upon the ground that as to those parties the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal by Alison R. Minton otherwise denied. Motion by Alison R. Minton for a stay dismissed as academic. Motion for leave to appeal, insofar as made by Dan McKinnon, dismissed upon the ground that as to him the order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal, insofar as made by Phil Bakes, denied.

DEVON MOORE, an Infant, by His Mother and Natural Guardian, GINA TOWNSEND, Appellant, v NEW YORK MEDICAL GROUP, P.C., et al., Defendants, and NEW YORK CITY HEALTH & HOSPITALS CORPORATION, Respondent.

Submitted December 24, 2007; decided February 12, 2008

Reported below, 44 AD3d 393.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of JONATHAN ODOM, Appellant, v DONALD SELSKY, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted January 7, 2008; decided February 12, 2008

Reported below, 2007 NY Slip Op 85566(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUDY KNOX, Appellant.

Submitted December 3, 2007; decided February 12, 2008

Reported below, 45 AD3d 274.

Motion for leave to appeal denied upon the ground that an appeal lies as of right. Motion for poor person relief dismissed as academic.

PRIME INCOME ASSET MANAGEMENT, INC., et al., Appellants, v AMERICAN REAL ESTATE HOLDINGS, L.P., et al., Respondents.

Submitted December 17, 2007; decided February 12, 2008

Reported below, 41 AD3d 176.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

RED TULIP, LLC, Plaintiff, v JUNIA HISSA NEIVA et al., Defendants. (And a Third-Party Action.)

PALM BEACH MORTGAGE MANAGEMENT, LLC, Respondent, v RED TULIP, LLC, et al., Defendants, and JUNIA HISSA NEIVA, Appellant.

Submitted December 10, 2007; decided February 12, 2008

Reported below, 44 AD3d 204.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of RIVERKEEPER, INC., Respondent, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants.

In the Matter of RICHARD FEUERMAN et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants.

In the Matter of CROTON WATERSHED CLEAN WATER COALITION, INC., et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants.

In the Matter of CHERIE INGRAHAM et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants.

Submitted December 24, 2007; decided February 12, 2008

Reported below, *Matter of Riverkeeper, Inc. v Planning Bd. of Town of Southeast*, 32 AD3d 431.

Reported below, *Matter of Ingraham v Planning Bd. of Town of Southeast*, 36 AD3d 911.

Motions for reargument denied [*see* 9 NY3d 219 (2007)].

In the Matter of RIVERKEEPER, INC., Respondent, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants.

In the Matter of RICHARD FEUERMAN et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants.

In the Matter of CROTON WATERSHED CLEAN WATER COALITION, INC., et al., Respondents, v PLANNING BOARD OF TOWN OF SOUTHEAST et al., Appellants.

Submitted January 22, 2008; decided February 12, 2008

Reported below, 32 AD3d 431.

Motion for reargument denied [*see* 9 NY3d 219 (2007)].

ANGELA M. RODRIGUEZ, Appellant, v ROBERT DOAR, as Commissioner of Onondaga County Department of Social Services, et al., Respondents.

Submitted January 7, 2008; decided February 12, 2008

Reported below, 42 AD3d 944.

Motion for reargument denied [*see* 9 NY3d 987 (2007)].

MICHAEL SAVERESE, Plaintiff, v NICOTRA GROUP, LLC, et al., Respondents, et al., Defendant. SCHWARTZ GOLDSTONE & CAMPISI, LLP, Nonparty Appellant. BAXTER SMITH TASSAN & SHAPIRO, P.C., et al., Nonparty Respondents. (And Other Actions.)

Submitted December 17, 2007; decided February 12, 2008

Reported below, 45 AD3d 315.

Motion for leave to appeal denied. Motion for a stay dismissed as academic.

In the Matter of 315 BERRY STREET CORPORATION, Appellant, v HANSON FINE ARTS et al., Respondents.

Submitted December 17, 2007; decided February 12, 2008

Reported below, 39 AD3d 656.

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain this motion for leave to appeal from the order of the Appellate Divi-

sion where the appeal to the Appellate Division was from an order entered in an appeal from another court (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

[883 NE2d 355, 853 NYS2d 530]

LEHMAN BROTHERS, INC., Respondent, v RODNEY T. COX, Appellant.

Decided February 14, 2008

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered August 23, 2007. The Appellate Division, with two Justices dissenting, affirmed an order and judgment of the Supreme Court, New York County (Marilyn Shafer, J.), which had granted petitioner's motion to vacate an arbitration award insofar as it awarded respondent \$48,000 on his counterclaim.

The arbitrators awarded petitioner \$122,000 for respondent's margin debt plus interest, and awarded respondent \$48,000 on his counterclaim for compensatory damages.

The Appellate Division majority concluded that the arbitration panel acted in excess of its authority when granting the counterclaim award. The dissent concluded that the counterclaim did not necessarily arise out of the negotiation for the stipulation of settlement; that the arbitration panel did not set forth any factual basis for its counterclaim awards, and that given petitioner's heavy burden to vacate the arbitration award it could not be said that its petition and supporting papers could serve as a basis for the vacatur.

Lehman Bros., Inc. v Cox, 43 AD3d 352, reversed.

HEADNOTE

Arbitration — Confirming or Vacating Award

In an arbitration proceeding arising from a dispute over a margin debt wherein the arbitrator awarded respondent \$48,000 on his counterclaim for compensatory damages, an Appellate Division order, which had affirmed an order and judgment granting petitioner's motion to vacate the \$48,000 portion of the award, was reversed, the petition was denied and respondent's cross motion, insofar as it sought to confirm the award, was granted. Petitioner failed to meet its heavy burden to vacate the arbitration award on respondent's counterclaim.

APPEARANCES OF COUNSEL

Law Offices of Isaac M. Zucker, PLLC, Garden City (*Barry M. Bordetsky* of counsel), for appellant.

Alonso, Andalkar & Kahn, P.C., New York City (*Erin E. Mac Avoy* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, petition denied in its entirety and respondent's cross motion, insofar as it sought to confirm the arbitrator's award to him of \$48,000, granted. Petitioner Lehman Brothers failed to meet its heavy burden to vacate the arbitration award on respondent Cox's counterclaim.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of GERARD AMEDIO, Appellant, v ALAN HEVESI, as
Comptroller of the State of New York, Respondent.

Submitted February 4, 2008; decided February 14, 2008

Reported below, 45 AD3d 1004.

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of ANONYMOUS, an Attorney.

Submitted January 7, 2008; decided February 14, 2008

Motion for reargument denied [*see* 9 NY3d 980 (2007)].

In the Matter of CITY OF NEW YORK, Appellant, Relative to the
Melrose Commons Urban Renewal Area, Phase II. KAISER
WOODCRAFT CORP., Respondent.

Submitted December 24, 2007; decided February 14, 2008

Reported below, 39 AD3d 131.

Motion by the New York State Urban Development Corporation doing business as Empire State Development Corporation

for leave to file a submission amicus curiae on the appeal herein granted and the submission is accepted as filed.

In the Matter of CITY OF NEW YORK, Appellant, Relative to the Melrose Commons Urban Renewal Area, Phase II. KAISER WOODCRAFT CORP., Respondent.

Submitted December 24, 2007; decided February 14, 2008

Reported below, 39 AD3d 131.

Motion by the Port Authority of New York and New Jersey for leave to file a letter brief amicus curiae on the appeal herein granted and the letter brief is accepted as filed.

FAIR PRICE MEDICAL SUPPLY CORP., as Assignee of CESAR NIVELO, Respondent, v TRAVELERS INDEMNITY COMPANY, Appellant.

Submitted February 11, 2008; decided February 14, 2008

Reported below, 42 AD3d 277.

Motion by New York Central Mutual Fire Insurance Company et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed.

JOAN HAYMON, Individually and as Mother and Natural Guardian of L.H., an Infant, Appellant, v DONALD J. PETTIT et al., Defendants, and AUBURN COMMUNITY NON-PROFIT BASEBALL ASSOCIATION, INC., Respondent.

Submitted December 31, 2007; decided February 14, 2008

Reported below, 37 AD3d 1194.

Motion for reargument denied [*see* 9 NY3d 324 (2007)].

LANDAU, P.C., as Successor, by Change of Name, to MORRIS J. EISEN, P.C., et al., Appellants, v LAROSSA, MITCHELL & ROSS, et al., Respondents.

Submitted December 24, 2007; decided February 14, 2008

Reported below, 41 AD3d 371.

Motion to dismiss the appeal herein denied.

WENDY LITWACK, Appellant, v PLAZA REALTY INVESTORS, INC., et al., Respondents.

Submitted February 4, 2008; decided February 14, 2008

Reported below, 40 AD3d 250.

Motion by the New York State Trial Lawyers' Association for leave to file a letter brief amicus curiae on the appeal herein granted and the letter brief is accepted as filed.

PENN HEIGHTS BEACH CLUB, INC., Appellant, v NANCY MYERS et al., Respondents.

Submitted December 17, 2007; decided February 14, 2008

Reported below, 42 AD3d 602.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent, v JEAN YVES JEAN-BAPTISTE, Respondent-Appellant.

Submitted February 11, 2008; decided February 14, 2008

Reported below, 44 AD3d 792.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent-appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN MALAUSSENA, Appellant.

Submitted February 11, 2008; decided February 14, 2008

Reported below, 44 AD3d 349.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PAT-
RICK MUNROE, Appellant.

Submitted February 11, 2008; decided February 14, 2008

Reported below, 18 Misc 3d 9.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DANIEL
SPARBER, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOHN
LINGLE, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT
THOMAS, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAN-
UEL RODRIGUEZ, Appellant.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v AN-
THONY WARE, Appellant.

Submitted February 11, 2008; decided February 14, 2008

Reported below, *People v Sparber*, 34 AD3d 265.

Reported below, *People v Lingle*, 34 AD3d 287.

Reported below, *People v Thomas*, 35 AD3d 192.

Reported below, *People v Rodriguez*, 33 AD3d 543.

Reported below, *People v Ware*, 36 AD3d 838.

Motion by Legal Aid Society of New York City for leave to file a brief amicus curiae on the appeals herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

KEVIN PLUDEMAN et al., Respondents, v NORTHERN LEASING
SYSTEMS, INC., et al., Appellants.

Submitted February 11, 2008; decided February 14, 2008

Reported below, 40 AD3d 366.

Motion by Chamber of Commerce of the United States of

America for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

DAVID S. PULTZ et al., Appellants, v CATHERINE ECONOMAKIS et al., Respondents.

Submitted February 11, 2008; decided February 14, 2008

Reported below, 40 AD3d 24.

Motion by Community Housing Improvement Program, Inc., et al. for leave to appear amici curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

DAVID S. PULTZ et al., Appellants, v CATHERINE ECONOMAKIS et al., Respondents.

Submitted February 11, 2008; decided February 14, 2008

Reported below, 40 AD3d 24.

Motion by the Rent Stabilization Association of New York City, Inc. for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of ROBERT M. RESTAINO, as Judge of the Niagara Falls City Court, Niagara County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted February 11, 2008; decided February 14, 2008

Motion by New York State Association of City Court Judges for leave to file a brief amicus curiae on the request for review herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

Judge PIGOTT taking no part.

In the Matter of ROBERT M. RESTAINO, as Judge of the Niagara Falls City Court, Niagara County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted February 11, 2008; decided February 14, 2008

Motion by Bar Association of Niagara County et al. for leave to appear amici curiae on the request for review herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

Judge PIGOTT taking no part.

In the Matter of ROBERT M. RESTAINO, as Judge of the Niagara Falls City Court, Niagara County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted February 11, 2008; decided February 14, 2008

Motion by Niagara Falls Boys' and Girls' Club, Inc., et al. for leave to appear amici curiae on the request for review herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

Judge PIGOTT taking no part.

In the Matter of ROBERT M. RESTAINO, as Judge of the Niagara Falls City Court, Niagara County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted February 11, 2008; decided February 14, 2008

Motion by Mary Ann Oliver, Esq., et al. for leave to file a brief amici curiae on the request for review herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

Judge PIGOTT taking no part.

In the Matter of ROBERT M. RESTAINO, as Judge of the Niagara Falls City Court, Niagara County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted February 11, 2008; decided February 14, 2008

Motion by Daniel T. Lukasik, Esq. for leave to appear amicus curiae on the request for review herein granted only to the

extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

Judge PIGOTT taking no part.

In the Matter of ROBERT M. RESTAINO, as Judge of the Niagara Falls City Court, Niagara County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted February 11, 2008; decided February 14, 2008

Motion by City of Niagara Falls Police Department et al. for leave to appear amici curiae on the request for review herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

Judge PIGOTT taking no part.

In the Matter of ROBERT M. RESTAINO, as Judge of the Niagara Falls City Court, Niagara County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted February 11, 2008; decided February 14, 2008

Motion by Phi Alpha Delta Law Fraternity, International for leave to appear amicus curiae on the request for review herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

Judge PIGOTT taking no part.

In the Matter of ROBERT M. RESTAINO, as Judge of the Niagara Falls City Court, Niagara County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted February 11, 2008; decided February 14, 2008

Motion by David J. Farrugia et al. for leave to appear amici curiae on the request for review herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

Judge PIGOTT taking no part.

In the Matter of ROBERT M. RESTAINO, as Judge of the Niagara Falls City Court, Niagara County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted February 11, 2008; decided February 14, 2008

Motion by City of Niagara Falls, New York for leave to appear amicus curiae on the request for review herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

Judge PIGOTT taking no part.

In the Matter of ROBERT M. RESTAINO, as Judge of the Niagara Falls City Court, Niagara County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted February 11, 2008; decided February 14, 2008

Motion for leave to file a brief amici curiae on the request for review herein granted to the extent that the brief is accepted as filed on behalf of Family and Children's Services of Niagara, Inc., Elizabeth Brady and Jennifer Hall; motion otherwise denied. Two copies of the brief must be served and 24 copies filed within seven days.

Judge PIGOTT taking no part.

[883 NE2d 352, 853 NYS2d 528]

In the Matter of GEORGE P. ALESSIO, JR., Appellant, v PAUL G. CAREY et al., Respondents.

Argued February 8, 2008; decided February 15, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered January 18, 2008. The Appellate Division (1) reversed, on the law, an order of the Supreme Court, Onondaga County (Deborah H. Karalunas, J.), which had, in a

proceeding pursuant to Election Law article 16 to determine the validity of absentee ballots cast in the general election for the Office of Town Justice in the Town of Salina, granted the petition, in part, and directed the Onondaga County Board of Elections to count three absentee ballots cast in petitioner's favor, (2) granted the motion to dismiss the petition, and (3) dismissed the petition.

Matter of Alessio v Carey, 47 AD3d 1194, reversed.

HEADNOTE

Elections — Judicial Proceedings — Jurisdiction

Supreme Court had subject matter jurisdiction over a proceeding brought by petitioner Town Justice candidate pursuant to Election Law § 16-106 (5) to direct a recanvassing of certain absentee ballots (Election Law § 16-106 [4]), where the Board of Elections had canvassed the absentee ballots and invalidated seven, five in favor of petitioner, due to intentional, extrinsic marks (Election Law § 9-112). Supreme Court has subject matter jurisdiction in a proceeding instituted by a candidate to contest “[t]he casting or canvassing or refusal to cast . . . void or canvass absentee . . . ballots” (Election Law § 16-106 [1]), provided that the proceeding is brought “within twenty days” after the “election” or the Board’s “alleged erroneous . . . determination” (Election Law § 16-106 [5]). The Board’s alleged erroneous determination was its invalidation of the seven absentee ballots on November 13, and petitioner instituted this proceeding within 20 days of that determination.

APPEARANCES OF COUNSEL

Cote, Limpert & Van Dayke, LLP, Syracuse (*Joseph S. Cote, III*, of counsel), for appellant.

Bruce R. Bryan, Syracuse, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed without costs and the case remitted to that Court for the consideration of issues raised, but not determined, on the appeal below.

Contrary to the Appellate Division’s view, Supreme Court did have subject matter jurisdiction over this special proceeding, brought pursuant to Election Law § 16-106 (5).

Petitioner was a candidate for Town Justice of the Town of Salina, supported by the Democratic and Working Families Parties. Respondent, who had the backing of the Republican, Independence, and Conservative Parties, was his opponent. The election was held on November 6, 2007. On November 13, the Board convened to canvass certain paper ballots, among them absentee ballots (*see* Election Law § 9-209). During that canvass-

ing, the Board invalidated seven absentee ballots, five in favor of petitioner, because those ballots contained intentional, extrinsic marks (*see* Election Law § 9-112).

Petitioner's representatives, who witnessed the November 13 canvassing, objected to the Board's decision. The Board considered their objection, but determined that the five disputed absentee ballots should remain invalidated. As a result, respondent unofficially prevailed in the election by a two-vote plurality. On November 21, petitioner filed a verified petition, seeking an order to show cause that, among other things, would require the Board to demonstrate why a "recanvassing" of the seven invalidated absentee ballots should not be conducted. On November 28, the petition was personally served on respondent.

Election Law § 16-106 vests Supreme Court with subject matter jurisdiction in a proceeding "instituted" by a "candidate" to "contest[]" "[t]he casting or canvassing or refusal to cast . . . void or canvass absentee . . . ballots" (Election Law § 16-106 [1]), provided that it is brought "within twenty days" after the "election" or the Board's "alleged erroneous . . . determination" (Election Law § 16-106 [5]). Here, the Board's alleged erroneous determination was its invalidation of the seven absentee ballots on November 13 and petitioner instituted this proceeding within 20 days of that determination. Since petitioner complied with Election Law § 16-106 (5), Supreme Court was vested with subject matter jurisdiction over this proceeding and with the authority to "direct a recanvass or the correction of an error" (*see* Election Law § 16-106 [4]).*

We disagree with the Appellate Division's conclusion that our decisions in *Testa v Ravitz* (84 NY2d 893 [1994]) and *Matter of Larsen v Canary* (107 AD2d 809 [1985], *affd for the reasons stated below* 65 NY2d 634 [1985]) control here. Those cases held that Supreme Court "lacks jurisdiction to conduct its own canvass . . . and determine a winner before the Board of Elections has conducted its canvass" (*see Testa*, 84 NY2d at 895; *see also Larsen*, 107 AD2d at 810 ["A reversal is necessary because Special Term acted without jurisdiction in conducting a canvass of the ballots before the board of elections had conducted its

* We note that Supreme Court may also have subject matter jurisdiction pursuant to Election Law § 16-106 (2), which authorizes a "voter" to "contest[]" the Board's "canvass of returns." Here, the petition alleges that petitioner "is now a qualified voter of Onondaga County . . . in the . . . Town of Salina." And it is undisputed that he is challenging the Board's November 13 canvass.

canvass’)]. In contrast, this case involves no such interference with the Board’s statutory authority to conduct a canvass in the first instance. It is undisputed that the canvass here was completed and thus, the above-cited precedents are inapposite.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

[883 NE2d 363, 853 NYS2d 537]

In the Matter of JAVIER R., an Infant. ROBERT R., Appellant;
ADMINISTRATION FOR CHILDREN’S SERVICES, Respondent, et
al., Respondent.

Decided February 19, 2008

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that court, entered June 21, 2007. The Appellate Division dismissed as moot an appeal from an order of the Family Court, New York County (Rhoda J. Cohen, J.), which, after a hearing, had denied applications by the parents for return of their child to the parental home. The following question was certified by the Appellate Division: “Was the order of this Court, which dismissed the appeal from the order of the Family Court, New York County, entered on or about January 31, 2006, properly made?”

Family Court denied the parents’ applications pursuant to Family Court Act § 1028 for the return of their son following his temporary removal. During the pendency of the father’s appeal to the Appellate Division, Family Court granted the mother’s motion to modify the order and paroled the child to the parents’ custody.

Matter of Javier R., 43 AD3d 1, appeal dismissed.

HEADNOTE

Appeal — Academic and Moot Questions

In a child neglect proceeding wherein Family Court initially denied applications by the parents for the return of their child following his temporary removal, and the Appellate Division dismissed the father’s appeal as moot because during the pendency of the appeal Family Court had granted the mother’s motion to modify the order and paroled the child to the parents’

custody, the appeal from the Appellate Division order was dismissed. The dismissal of the underlying neglect proceeding on consent subsequent to the Appellate Division order rendered the appeal moot.

APPEARANCES OF COUNSEL

Randall Carmel, Syosset, for appellant.

Michael A. Cardozo, *Corporation Counsel*, New York City (*Scott Shorr* of counsel), for Administration for Children's Services, respondent.

Legal Aid Society, New York City (*John A. Newbery* of counsel), *Law Guardian*.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), appeal dismissed, without costs. Under the circumstances of this case, the dismissal of the underlying neglect proceeding on consent subsequent to the Appellate Division order rendered the appeal to this Court moot. Thus, we do not have occasion to pass on the propriety of the Appellate Division determination.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

ELLEN BLUTH, Respondent, v HARVEY BLUTH, Appellant.

Submitted January 14, 2008; decided February 19, 2008

Reported below, 45 AD3d 796.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of BOARD OF MANAGERS OF THE 225 EAST 57TH STREET CONDOMINIUM, Appellant, v CAMPANIELLO REAL ESTATE, Respondent.

Submitted December 31, 2007; decided February 19, 2008

Reported below, 41 AD3d 163.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

COMMITTEE TO SAVE ST. BRIGID'S INC. et al., Appellants, v EDWARD CARDINAL EGAN et al., Respondents.

Submitted February 4, 2007; decided February 19, 2008

Reported below, 45 AD3d 375.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal granted.

EFCO CORPORATION, Respondent, v HELENA ASSOCIATES LLC, Appellant, et al., Defendants.

Submitted December 31, 2007; decided February 19, 2008

Reported below, 45 AD3d 399.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of CITY OF ELMIRA et al., Respondents-Appellants, v JOHN DOE, Appellant-Respondent.

Submitted December 31, 2007; decided February 19, 2008

Reported below, 39 AD3d 942.

Motion for leave to appeal by appellant-respondent John Doe granted. Cross motion for leave to appeal by respondents-appellants City of Elmira et al. dismissed as untimely.

In the Matter of KEVIN MARTIN, Appellant, v GLENN S. GOORD, as Commissioner of Correctional Services, Respondent. (And Another Related Proceeding.)

Submitted February 11, 2008; decided February 19, 2008

Reported below, 45 AD3d 992.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

JOHN MOODY, Respondent, v SVETLANA SOROKINA, Appellant.

Submitted February 11, 2008; decided February 19, 2008

Reported below, 40 AD3d 14.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

NYCTL 1999-1 TRUST et al., Respondents, v 114 TENTH AVENUE ASSOC., INC., Appellant, and CARLTON CAPITAL CORP., Intervenor-Respondent, et al., Defendants.

Submitted February 4, 2008; decided February 19, 2008

Reported below, 44 AD3d 576.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

JAMES OWEN, Individually and as a Shareholder of Starpoint Publishing Corp., Appellant, v LINDSAY HAMILTON et al., Respondents.

Submitted November 26, 2007; decided February 19, 2008

Reported below, 44 AD3d 452, 593.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT BUSS, Appellant.

Submitted November 19, 2007; decided February 19, 2008

Reported below, 44 AD3d 634.

Motion for leave to appeal granted. Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* ALONZO DERRICK, Appellant, *v* WARDEN, GEORGE MOTCHAN DETENTION CENTER (RIKERS ISLAND), Respondent.

Submitted February 11, 2008; decided February 19, 2008

Reported below, 2007 NY Slip Op 78802(U).

Appeal dismissed, without costs, by the Court of Appeals, *sua sponte*, upon the ground that relator has been released from custody and, therefore, his liberty is no longer restrained to such a degree as to entitle him to the extraordinary writ of habeas corpus (*see People ex rel. Wilder v Markley*, 26 NY2d 648 [1970]).

HELEN SALICHS, Appellant, *v* WARREN JAMES, Respondent.

Submitted January 28, 2008; decided February 19, 2008

Reported below, Sup Ct, NY County, May 17, 2007 (294 AD2d 160).

Motion for reargument of motion for leave to appeal denied [*see* 9 NY3d 998 (2007)].

STATE OF NEW YORK *et al.*, Plaintiffs, *v* CLARK E. MCLEOD, Defendant. MCLEODUSA, INCORPORATED, Intervenor-Appellant; ELIOT SPITZER, as Attorney General of the State of New York, Respondent.

Submitted January 7, 2008; decided February 19, 2008

Reported below, 45 AD3d 282.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution (Karger, Powers of the New York Court of Appeals § 5:17, at 150 [3d ed rev]).

[883 NE2d 1008, 854 NYS2d 101]

In the Matter of ROBERT FEHRMAN et al., Petitioners, v NEW YORK STATE BOARD OF ELECTIONS et al., Respondents. (Proceeding No. 1.)

In the Matter of DARREL AUBERTINE, Respondent, v OSWEGO COUNTY INDEPENDENCE PARTY INTERIM COUNTY ORGANIZATION et al., Respondents, and NEW YORK STATE COMMITTEE OF THE INDEPENDENCE PARTY OF NEW YORK et al., Appellants. (Proceeding No. 2.)

Argued February 25, 2008; decided February 25, 2008

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered February 22, 2008. The Appellate Division, with two Justices dissenting, insofar as appealed from, affirmed an order of the Supreme Court, Albany County (Eugene P. Devine, J.), which had granted petitioners' applications, in two proceedings pursuant to Election Law § 16-102, to declare invalid the certificates of nomination and authorizations naming Will Barclay and Darrel Aubertine as the Independence Party candidate for the public office of State Senator for the 48th District in the February 26, 2008 special election.

Matter of Fehrman v New York State Bd. of Elections, 48 AD3d 954, reversed.

Matter of Aubertine v Oswego County Independence Party Interim County Org., 48 AD3d 954, reversed.

HEADNOTE

Elections — Certificate of Nomination — Standing

In proceedings to invalidate nominating certificates for the Independence Party candidate for the office of State Senator in a special election, respondent, a nonmember of the Independence Party, lacked standing to challenge that party's compliance with its own rules because he was not an "aggrieved candidate" within the meaning of Election Law § 16-102. Although at a point before the first of these proceedings began, respondent had a bona fide claim to be the Independence Party's candidate, he abandoned that assertion and argued to the courts below and on appeal to the Court of Appeals that the Independence Party had not validly nominated any candidate. Accordingly, an Appellate Division order which had affirmed an order granting the applications was reversed, the proceeding to invalidate the nomination of appellant nominated candidate was dismissed, and the injunction preventing the State Board and County Boards of Elections from placing appellant's name on the ballot was vacated.

APPEARANCES OF COUNSEL

A. Joshua Ehrlich, Albany, for New York State Committee of the Independence Party of New York and others, appellants.

John Ciampoli, Albany, for Will Barclay, appellant.

Martin E. Connor, Brooklyn, for Darrel Aubertine, respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division, insofar as appealed from, should be reversed, without costs, the proceeding to invalidate the nomination of Will Barclay dismissed and the injunction preventing the State Board and County Boards of Elections from placing Barclay's name on the ballot vacated.

On the facts of this case, Darrel Aubertine, a nonmember of the Independence Party, lacked standing to challenge that party's compliance with its own rules (*see Matter of Nicolai v Kelleher*, 45 AD3d 960 [3d Dept 2007]; *Matter of Stempel v Albany County Bd. of Elections*, 97 AD2d 647 [3d Dept 1983], *aff'd* 60 NY2d 801 [1983]). Although, at a point before the first of these proceedings began, Aubertine had a bona fide claim to be the Independence Party's candidate for State Senator, events that preceded the start of the litigation eliminated any basis for such a claim. While Aubertine asserted in pleadings below that he was the Independence Party candidate, he promptly abandoned that assertion; he argued below and argues here that the Independence Party has not validly nominated any candidate. Under these circumstances, Aubertine is not an "aggrieved candidate" within the meaning of Election Law § 16-102.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order, insofar as appealed from, reversed, etc.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(February 1, 2008 through February 29, 2008)

Rensselaer, City of, Matter of
(Harris)

App Div, 3d Dept,
July 26, 2007

2/5/08

People v Jackson

4th Dept: 45 AD3d 1423

2/14/08

MEMORANDA

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APPEALS WITHDRAWN AND DISCONTINUED

(February 1, 2008 through February 29, 2008)

Havana Cent. NY2 LLC v Lunney's Pub, Inc.	1st Dept: 49 AD3d 70	2/11/08
Medina Amor S., Matter of (Omar S.)	1st Dept: 50 AD3d 8	2/11/08

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(February 1, 2008 through February 29, 2008)

People v Abreu	1st Dept: 46 AD3d 253 (NY)	denied 2/20/08 (Ciparick, J.)
People v Adams	3d Dept: 47 AD3d 968 (Chemung)	denied 2/22/08 (Smith, J.)
People v Aguirre	1st Dept: 47 AD3d 489 (NY)	dismissed 2/27/08 (Kaye, Ch.J.)
People v Al	4th Dept: 46 AD3d 1396 (Cayuga)	denied 2/15/08 (Grafteo, J.) (Appeal No. 1)
People v Al	4th Dept: 46 AD3d 1396 (Cayuga)	denied 2/15/08 (Grafteo, J.) (Appeal No. 2)
People v Albanese	2d Dept: 45 AD3d 691 (Nassau)	denied 2/20/08 (Smith, J.)
People v Aponte	App Div, 1st Dept: 2007 NY Slip Op 80257(U) (Bronx)	dismissed 2/21/08 (Read, J.)
People v Argueta	2d Dept: 46 AD3d 46 (Nassau)	dismissed 2/13/08 (Pigott, J.)
People v Ashley	3d Dept: 45 AD3d 987 (Sullivan)	denied 2/29/08 (Pigott, J.)
People v Assadourian	App Div, 1st Dept: 2007 NY Slip Op 73895(U) (NY)	denied 2/29/08 (Jones, J.)
People v Badia	1st Dept: 46 AD3d 312 (NY)	denied 2/15/08 (Grafteo, J.)
People v Barra	4th Dept: 45 AD3d 1393 (Steuben)	denied 2/21/08 (Read, J.)
People v Basnight	2d Dept: 46 AD3d 697 (Queens)	dismissed 2/19/08 (Smith, J.)
People v Benet	4th Dept: 45 AD3d 1449 (Monroe)	denied 2/29/08 (Jones, J.)

People v Bierd	2d Dept: 46 AD3d 697 (Suffolk)	denied 2/26/08 (Read, J.)
People v Black	3d Dept: 45 AD3d 1039 (Schenectady)	denied 2/6/08 (Jones, J.)
People v Blake	4th Dept: 46 AD3d 1463 (Onondaga)	dismissed 2/26/08 (Grafteo, J.)
People v Bourne	3d Dept: 46 AD3d 1101 (Schenectady)	denied 2/22/08 (Smith, J.)
People v Bowers	4th Dept: 45 AD3d 1422 (Wyoming)	denied 2/19/08 (Ciparick, J.)
People v Brooks	App Div, 1st Dept: 2007 NY Slip Op 85286(U) (NY)	dismissed 2/29/08 (Pigott, J.)
People v Brown	App Div, 1st Dept: 2007 NY Slip Op 86202(U) (NY)	denied 2/29/08 (Grafteo, J.)
People v Bruce (Wesley)	4th Dept: 46 AD3d 1396 (Cayuga)	denied 2/15/08 (Grafteo, J.) (Appeal No. 1)
People v Bruce (Wesley)	4th Dept: 46 AD3d 1396 (Cayuga)	denied 2/15/08 (Grafteo, J.) (Appeal No. 2)
People v Burgess	2d Dept: 44 AD3d 869 (Kings)	denied 2/25/08 (Read, J.)
People v Bush (Timothy)	App Div, 3d Dept: 2007 NY Slip Op 82707(U) (Tompkins)	denied 2/20/08 (Ciparick, J.)
People v Bush (Walter)	1st Dept: 45 AD3d 393 (NY)	denied 2/21/08 (Read, J.)
People v Callahan	County Ct, 12/21/07 (Schenectady)	denied 2/29/08 (Grafteo, J.)
People v Cameron	App Div, 1st Dept: 2007 NY Slip Op 85475(U) (Bronx)	denied 2/29/08 (Jones, J.)
People v Cancel	1st Dept: 45 AD3d 372 (NY)	denied 2/29/08 (Pigott, J.)
People v Caroselli	2d Dept: 44 AD3d 1073 (Kings)	denied 2/21/08 (Read, J.)
People v Castillo	App Div, 2d Dept: 2007 NY Slip Op 84445(U) (Queens)	dismissed 2/26/08 (Pigott, J.)
People v Castro	1st Dept: 46 AD3d 477 (NY)	denied 2/29/08 (Grafteo, J.)
People v Cavallaro	3d Dept: 46 AD3d 1024 (Broome)	dismissed 2/19/08 (Smith, J.)
People v Challenger-Hinds	App Term, 2d Dept: 18 Misc 3d 127(A) (Nassau)	denied 2/29/08 (Jones, J.)
People v Chambers	1st Dept: 45 AD3d 465 (Bronx)	denied 2/28/08 (Grafteo, J.)
People v Charles	1st Dept: 45 AD3d 359 (NY)	denied 2/29/08 (Jones, J.)
People v Clark	2d Dept: 45 AD3d 776 (Suffolk)	denied 2/29/08 (Jones, J.)

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People v Clemmons	3d Dept: 46 AD3d 1117 (Albany)	denied 2/15/08 (Grafteo, J.)
People v Coleman	1st Dept: 45 AD3d 432 (NY)	denied 2/21/08 (Read, J.)
People v Collazo	2d Dept: 45 AD3d 857 (Suffolk)	denied 2/20/08 (Ciparick, J.)
People v Colon (Carlos)	2d Dept: 45 AD3d 776 (Queens)	denied 2/29/08 (Pigott, J.)
People v Colon (Omar)	2d Dept: 43 AD3d 951 (Kings)	denied 2/29/08 (Pigott, J.)
People v Conway	3d Dept: 45 AD3d 1055 (St. Lawrence)	denied 2/6/08 (Jones, J.)
People v Coon	3d Dept: 45 AD3d 897 (Madison)	denied 2/21/08 (Read, J.)
People v Corley	2d Dept: 45 AD3d 857 (Queens)	dismissed 2/7/08 (Ciparick, J.)
People v Cortes	2d Dept: 44 AD3d 1068 (Orange)	denied 2/26/08 (Read, J.)
People v Cotton	App Div, 4th Dept, 11/29/07 (Monroe)	dismissed 2/28/08 (Smith, J.)
People v Craig	1st Dept: 45 AD3d 323 (NY)	denied 2/25/08 (Kaye, Ch.J.)
People v Crumble	2d Dept: 43 AD3d 953 (Queens)	denied 2/8/08 (Pigott, J.)
People v Cruz	2d Dept: 46 AD3d 567 (Kings)	denied 2/26/08 (Read, J.)
People v Cuascut	1st Dept: 46 AD3d 323 (NY)	denied 2/26/08 (Jones, J.)
People v Cumberland	App Div, 1st Dept: 2007 NY Slip Op 87109(U) (NY)	denied 2/29/08 (Grafteo, J.)
People v Cyrus	1st Dept: 48 AD3d 150 (NY)	denied 2/29/08 (Grafteo, J.)
People v Davis (Keith)	2d Dept: 43 AD3d 448 (Kings)	denied reconsideration 2/20/08 (Ciparick, J.)
People v Davis (William)	3d Dept: 45 AD3d 1039 (Schenectady)	denied 2/6/08 (Jones, J.)
People v Dean	3d Dept: 46 AD3d 1229 (Greene)	denied 2/29/08 (Jones, J.)
People v Deans	2d Dept: 44 AD3d 681 (Queens)	denied 2/26/08 (Read, J.)
People v DeJesus (Manuel)	1st Dept: 44 AD3d 464 (Bronx)	denied 2/14/08 (Jones, J.)
People v DeJesus (Maria)	1st Dept: 46 AD3d 325 (NY)	denied 2/29/08 (Grafteo, J.)
People v DeLaCruz	App Div, 1st Dept: 2007 NY Slip Op 80866(U) (NY)	denied 2/25/08 (Read, J.)
People v DeLorenzo	4th Dept: 45 AD3d 1402 (Lewis)	denied 2/19/08 (Ciparick, J.)

People v Dicken	County Ct, 11/14/07 (Albany)	denied 2/29/08 (Pigott, J.)
People v Dillhunt	1st Dept: 41 AD3d 216 (NY)	denied 2/26/08 (Jones, J.)
People v Dixon	4th Dept: 37 AD3d 1124 (Steuben)	denied 2/20/08 (Smith, J.)
People v Dongo	2d Dept: 45 AD3d 695 (Queens)	denied 2/26/08 (Read, J.)
People v Doumbia (Amed)	1st Dept: 45 AD3d 436 (NY)	denied 2/20/08 (Ciparick, J.)
People v Doumbia (Hamed)	1st Dept: 45 AD3d 436 (NY)	denied 2/20/08 (Ciparick, J.)
People v Dozier	1st Dept: 44 AD3d 403 (NY)	denied 2/26/08 (Jones, J.)
People v Duda	4th Dept: 45 AD3d 1464 (Erie)	denied 2/19/08 (Smith, J.)
People v Eddie	1st Dept: 44 AD3d 413 (NY)	denied 2/14/08 (Jones, J.)
People v Eduardo	1st Dept: 44 AD3d 371 (NY)	granted 2/19/08 (Jones, J.)
People v Edwards (James)	App Div, 2d Dept: 2007 NY Slip Op 85367(U) (Nassau)	dismissed 2/15/08 (Ciparick, J.)
People v Edwards (Mark)	2d Dept: 46 AD3d 698 (Nassau)	denied 2/29/08 (Pigott, J.)
People v Ellis (Darnell)	3d Dept: 45 AD3d 1048 (Albany)	denied 2/29/08 (Pigott, J.)
People v Ellis (Leon)	3d Dept: 46 AD3d 934 (St. Lawrence)	denied 2/15/08 (Grafteo, J.)
People v Elsberry	4th Dept: 46 AD3d 1463 (Onondaga)	dismissed 2/26/08 (Grafteo, J.)
People v Esquivel	1st Dept: 46 AD3d 394 (Bronx)	denied 2/22/08 (Smith, J.)
People v Evans	2d Dept: 45 AD3d 859 (Nassau)	denied 2/29/08 (Pigott, J.)
People v Fallen	App Div, 2d Dept: 2007 NY Slip Op 80449(U) (Orange)	dismissed 2/21/08 (Read, J.)
People v Fagnoli	County Ct, 11/16/07 (Monroe)	denied 2/29/08 (Jones, J.)
People v Fehr	3d Dept: 45 AD3d 920 (Broome)	denied 2/21/08 (Read, J.)
People v Felder	2d Dept: 46 AD3d 700 (Suffolk)	denied 2/20/08 (Smith, J.)
People v Felice	4th Dept: 45 AD3d 1442 (Onondaga)	denied 2/26/08 (Jones, J.)
People v Finlan	4th Dept: 46 AD3d 1415 (Niagara)	denied 2/26/08 (Jones, J.)
People v Fisher	App Div, 2d Dept: 2007 NY Slip Op 76104(U) (Nassau)	dismissed 2/29/08 (Pigott, J.)

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People v Flores (Antonio)	2d Dept: 46 AD3d 570 (Kings)	denied 2/26/08 (Read, J.)
People v Flores (Jose)	1st Dept: 46 AD3d 302 (NY)	dismissed 2/26/08 (Grafteo, J.)
People v Floyd	4th Dept: 45 AD3d 1408 (Niagara)	denied 2/29/08 (Jones, J.)
People v Fludd	1st Dept: 44 AD3d 408 (NY)	denied 2/21/08 (Read, J.)
People v Ford	1st Dept: 44 AD3d 515 (NY)	granted 2/27/08 (Grafteo, J.)
People v Forrester	App Term, 2d Dept: 2007 NY Slip Op 85154(U) (Suffolk)	denied 2/20/08 (Ciparick, J.)
People v French	4th Dept: 46 AD3d 1450 (Ontario)	denied 2/29/08 (Jones, J.)
People v Frierson	1st Dept: 45 AD3d 441 (NY)	denied 2/15/08 (Grafteo, J.)
People v G	3d Dept: 45 AD3d 907 (Rensselaer)	denied 2/6/08 (Jones, J.)
People v Gantt	1st Dept: 48 AD3d 59 (NY)	denied 2/28/08 (Grafteo, J.)
People v Garcia (Anthony)	2d Dept: 45 AD3d 859 (Queens)	denied 2/26/08 (Jones, J.)
People v Garcia (Jose)	2d Dept: 46 AD3d 573 (Suffolk)	denied 2/29/08 (Pigott, J.)
People v Gillespie	1st Dept: 44 AD3d 575 (NY)	denied 2/21/08 (Read, J.)
People v Gilliam	4th Dept: 45 AD3d 1330 (Onondaga)	denied 2/21/08 (Read, J.)
People v Gomez (Alex)	2d Dept: 46 AD3d 836 (Queens)	denied 2/22/08 (Smith, J.)
People v Gomez (Alez)	2d Dept: 46 AD3d 836 (Queens)	denied 2/22/08 (Smith, J.)
People v Gonzalez	App Div, 4th Dept: 2008 NY Slip Op 61310(U) (Monroe)	dismissed 2/25/08 (Kaye, Ch.J.)
People v Gouvatsos	2d Dept: 45 AD3d 779 (Queens)	denied 2/8/08 (Pigott, J.)
People v Gray	2d Dept: 46 AD3d 703 (Suffolk)	denied 2/29/08 (Pigott, J.)
People v Greene	1st Dept: 46 AD3d 307 (NY)	denied 2/26/08 (Jones, J.)
People v Grullon	1st Dept: 44 AD3d 516 (NY)	denied 2/8/08 (Pigott, J.)
People v Guerra-Pena	4th Dept: 46 AD3d 1469 (Onondaga)	denied 2/29/08 (Jones, J.)
People v Hamdy	4th Dept: 46 AD3d 1383 (Niagara)	denied 2/20/08 (Smith, J.)
People v Hamilton	4th Dept: 45 AD3d 1396 (Jefferson)	denied 2/19/08 (Ciparick, J.)

People v Hancock	1st Dept: 46 AD3d 383 (NY)	denied 2/29/08 (Grafteo, J.)
People v Heckstall	3d Dept: 45 AD3d 907 (Rensselaer)	denied 2/6/08 (Jones, J.)
People v Henry	4th Dept: 46 AD3d 1436 (Monroe)	denied 2/26/08 (Grafteo, J.)
People v Hercules	2d Dept: 47 AD3d 835 (Kings)	denied 2/25/08 (Jones, J.)
People v Herdt	2d Dept: 45 AD3d 698 (Westchester)	denied 2/26/08 (Jones, J.)
People v Hernandez (Edison)	1st Dept: 47 AD3d 540 (NY)	denied 2/26/08 (Grafteo, J.)
People v Hernandez (Oscar)	2d Dept: 44 AD3d 1072 (Queens)	denied 2/29/08 (Jones, J.)
People v Higgins	3d Dept: 45 AD3d 975 (Schoharie)	denied 2/29/08 (Jones, J.)
People v Holloway	1st Dept: 45 AD3d 477 (NY)	denied 2/29/08 (Pigott, J.)
People v Horan	2d Dept: 44 AD3d 1073 (Kings)	denied 2/21/08 (Read, J.)
People v Horsey	4th Dept: 45 AD3d 1378 (Monroe)	denied 2/29/08 (Read, J.)
People v Horton	3d Dept: 46 AD3d 1225 (Chemung)	denied 2/22/08 (Smith, J.)
People v Howell (David)	2d Dept: 44 AD3d 685 (Kings)	denied 2/19/08 (Ciparick, J.)
People v Howell (Donald)	2d Dept: 44 AD3d 686 (Kings)	denied 2/19/08 (Ciparick, J.)
People v Hurley	App Div, 2d Dept: 2007 NY Slip Op 87338(U) (Queens)	dismissed 2/6/08 (Kaye, Ch.J.)
People v Hussain	2d Dept: 44 AD3d 1073 (Kings)	denied 2/21/08 (Read, J.)
People v Hyland	2d Dept: 45 AD3d 781 (Queens)	denied 2/21/08 (Read, J.)
People v Irwin	4th Dept: 45 AD3d 1423 (Jefferson)	denied 2/4/08 (Kaye, Ch.J.)
People v Jackson	3d Dept: 46 AD3d 1110 (Madison)	denied 2/15/08 (Grafteo, J.)
People v Jamison	4th Dept: 45 AD3d 1438 (Monroe)	denied 2/20/08 (Smith, J.)
People v Jenkins (David)	1st Dept: 45 AD3d 448 (NY)	denied 2/25/08 (Read, J.)
People v Jenkins (Glenn)	1st Dept: 46 AD3d 392 (NY)	denied 2/26/08 (Smith, J.)
People v Jenkins (Nori)	2d Dept: 45 AD3d 864 (Kings)	denied 2/26/08 (Read, J.)
People v Jennings	3d Dept: 46 AD3d 1029 (Tompkins)	denied 2/29/08 (Pigott, J.)
People v Johnson (Anthony)	1st Dept: 45 AD3d 366 (NY)	denied 2/13/08 (Kaye, Ch.J.)

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People v Johnson (Keith)	2d Dept: 45 AD3d 865 (Queens)	denied 2/25/08 (Kaye, Ch.J.)
People v Johnson (Waturi)	2d Dept: 45 AD3d 865 (Queens)	denied 2/25/08 (Kaye, Ch.J.)
People v Jones (April)	App Term, 1st Dept: 18 Misc 3d 63 (Bronx)	denied 2/20/08 (Ciparick, J.)
People v Kalu	2d Dept: 45 AD3d 699 (Queens)	denied 2/29/08 (Pigott, J.)
People v Kemp	App Div, 1st Dept: 2007 NY Slip Op 80863(U) (NY)	denied 2/20/08 (Ciparick, J.)
People v Kester	4th Dept: 45 AD3d 1355 (Monroe)	denied 2/20/08 (Ciparick, J.)
People v Kilgore	3d Dept: 45 AD3d 886 (Sullivan)	denied 2/15/08 (Grafteo, J.)
People v Kitchens	2d Dept: 46 AD3d 577 (Kings)	denied 2/19/08 (Smith, J.)
People v Kong Wang	App Term, 1st Dept: 17 Misc 3d 133(A) (NY)	denied 2/8/08 (Pigott, J.)
People v Kozlowski	1st Dept: 47 AD3d 111 (NY)	granted 2/28/08 (Ciparick, J.)
People v Krasnovsky	1st Dept: 45 AD3d 446 (NY)	denied 2/21/08 (Smith, J.)
People v Kulakov	App Div, 3d Dept, 12/31/07 (Clinton)	dismissed 2/15/08 (Ciparick, J.)
People v Kyle	4th Dept: 45 AD3d 1408 (Niagara)	denied 2/21/08 (Read, J.)
People v L	4th Dept: 46 AD3d 1396 (Cayuga)	denied 2/15/08 (Grafteo, J.) (Appeal No. 1)
People v L	4th Dept: 46 AD3d 1396 (Cayuga)	denied 2/15/08 (Grafteo, J.) (Appeal No. 2)
People v LaConte	2d Dept: 45 AD3d 699 (Queens)	denied 2/21/08 (Read, J.)
People v Lake	4th Dept: 45 AD3d 1409 (Erie)	denied 2/21/08 (Read, J.)
People v Leonard	1st Dept: 45 AD3d 410 (NY)	denied 2/15/08 (Grafteo, J.)
People v Lewis	2d Dept: 43 AD3d 1183 (Kings)	denied 2/21/08 (Read, J.)
People v Lorenzana	2d Dept: 46 AD3d 705 (Nassau)	denied 2/29/08 (Jones, J.)
People v Lucky	3d Dept: 45 AD3d 1048 (Albany)	denied 2/29/08 (Pigott, J.)
People v Ludwigsen	App Div, 2d Dept: 2007 NY Slip Op 86603(U) (Kings)	dismissed 2/8/08 (Jones, J.)
People v Marquez	1st Dept: 45 AD3d 478 (NY)	denied 2/29/08 (Jones, J.)
People v Marrant	1st Dept: 45 AD3d 410 (NY)	denied 2/29/08 (Pigott, J.)

People v Marshall	2d Dept: 44 AD3d 878 (Kings)	denied 2/25/08 (Read, J.)
People v Martin	2d Dept: 46 AD3d 705 (Suffolk)	denied 2/26/08 (Jones, J.)
People v Martinez	2d Dept: 44 AD3d 795 (Queens)	denied 2/25/08 (Read, J.)
People v Matias	App Div, 1st Dept: 2007 NY Slip Op 82404(U) (Bronx)	dismissed 2/21/08 (Smith, J.)
People v Mattis	2d Dept: 45 AD3d 869 (Kings)	denied 2/26/08 (Jones, J.)
People v McClelland	4th Dept: 45 AD3d 1423 (Erie)	denied 2/25/08 (Read, J.)
People v McDowell	1st Dept: 45 AD3d 398 (NY)	denied 2/20/08 (Ciparick, J.)
People v Mejia	1st Dept: 45 AD3d 402 (Bronx)	denied 2/25/08 (Read, J.)
People v Menze	2d Dept: 45 AD3d 785 (Westchester)	denied 2/28/08 (Grafteo, J.)
People v Merriman	2d Dept: 45 AD3d 700 (Suffolk)	denied 2/20/08 (Ciparick, J.)
People v Minor	3d Dept: 45 AD3d 885 (Washington)	denied 2/26/08 (Read, J.)
People v Mitchell	4th Dept: 45 AD3d 1355 (Erie)	denied 2/6/08 (Jones, J.)
People v Moghaless	2d Dept: 43 AD3d 1077 (Kings)	granted 2/13/08 (Kaye, Ch.J.)
People v Mohammed	1st Dept: 45 AD3d 251 (Bronx)	denied 2/21/08 (Read, J.)
People v Monroe	County Ct, 11/15/07 (Monroe)	denied 2/21/08 (Smith, J.)
People v Montefusco	2d Dept: 44 AD3d 879 (Suffolk)	denied 2/19/08 (Smith, J.)
People v Montoya	1st Dept: 45 AD3d 496 (NY)	dismissed 2/26/08 (Pigott, J.)
People v Mora (Geraldo)	1st Dept: 44 AD3d 489 (NY)	denied 2/29/08 (Jones, J.)
People v Mora (Heraldo)	1st Dept: 44 AD3d 489 (NY)	denied 2/29/08 (Jones, J.)
People v Mora (Herbert)	1st Dept: 44 AD3d 489 (NY)	denied 2/29/08 (Jones, J.)
People v Morales	4th Dept: 46 AD3d 1395 (Onondaga)	dismissed 2/21/08 (Read, J.)
People v Morgan (Steve)	4th Dept: 46 AD3d 1418 (Ontario)	denied 2/15/08 (Grafteo, J.)
People v Morgan (Walter)	2d Dept: 44 AD3d 797 (Orange)	denied 2/28/08 (Smith, J.)
People v Moss (Damien)	4th Dept: 45 AD3d 1412 (Monroe)	denied 2/26/08 (Kaye, Ch.J.) (Appeal No. 1)

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People v Moss (Damien)	4th Dept: 45 AD3d 1412 (Monroe)	denied 2/26/08 (Kaye, Ch.J.) (Appeal No. 2)
People v Muka	County Ct, 10/17/07 (Tompkins)	denied 2/15/08 (Grafteo, J.)
People v Mullen	4th Dept: 45 AD3d 1408 (Monroe)	denied 2/26/08 (Read, J.)
People v Muniz	2d Dept: 44 AD3d 1074 (Queens)	denied 2/26/08 (Read, J.)
People v Murray	1st Dept: 45 AD3d 491 (Bronx)	denied 2/15/08 (Grafteo, J.)
People v Nager	App Term, 2d Dept: 2007 NY Slip Op 87546(U) (Nassau)	dismissed 2/8/08 (Jones, J.)
People v Nichols	4th Dept: 45 AD3d 1423 (Oneida)	denied 2/29/08 (Jones, J.)
People v Nickens	1st Dept: 46 AD3d 363 (NY)	denied 2/29/08 (Grafteo, J.)
People v Niver	3d Dept: 45 AD3d 1051 (Schuyler)	denied 2/21/08 (Read, J.)
People v Nivol	1st Dept: 45 AD3d 432 (NY)	denied 2/20/08 (Ciparick, J.)
People v Nowell	2d Dept: 46 AD3d 707 (Westchester)	denied 2/26/08 (Smith, J.)
People v Odenthal	2d Dept: 45 AD3d 874 (Kings)	denied 2/29/08 (Jones, J.)
People v Ogburn (Ronald)	3d Dept: 46 AD3d 1018 (Washington)	denied 2/20/08 (Ciparick, J.)
People v Ogburn (Ronald)	3d Dept: 46 AD3d 1023 (Saratoga)	denied 2/20/08 (Ciparick, J.)
People v Ojo	4th Dept: 43 AD3d 1367 (Jefferson)	denied 2/26/08 (Jones, J.)
People v Ortiz (Jose)	2d Dept: 46 AD3d 707 (Queens)	denied 2/20/08 (Ciparick, J.)
People v Ortiz (Josue)	4th Dept: 46 AD3d 1409 (Erie)	denied 2/26/08 (Read, J.)
People v Ortiz (Olvin)	2d Dept: 46 AD3d 580 (Suffolk)	denied 2/26/08 (Jones, J.)
People v Parker	3d Dept: 45 AD3d 1187 (Greene)	denied 2/21/08 (Grafteo, J.)
People v Payne	1st Dept: 45 AD3d 370 (NY)	denied 2/26/08 (Jones, J.)
People v Peralta	1st Dept: 46 AD3d 257 (NY)	denied 2/20/08 (Ciparick, J.)
People v Perez	1st Dept: 44 AD3d 417 (NY)	denied 2/21/08 (Read, J.)
People v Peterec	County Ct, 10/12/07 (Sullivan)	denied 2/29/08 (Pigott, J.)
People v Pickens	3d Dept: 45 AD3d 1187 (Greene)	denied 2/21/08 (Grafteo, J.)

People v Piquet	4th Dept: 46 AD3d 1438 (Monroe)	denied 2/15/08 (Grafteo, J.)
People v Pitcher	3d Dept: 45 AD3d 881 (Rensselaer)	denied 2/26/08 (Read, J.)
People v Pitterson	1st Dept: 45 AD3d 308 (Bronx)	denied 2/25/08 (Read, J.)
People v Ponder	4th Dept: 43 AD3d 1398 (Monroe)	denied 2/6/08 (Jones, J.)
People v Postell	2d Dept: 45 AD3d 609 (Westchester)	denied 2/21/08 (Grafteo, J.)
People v Powell (James)	4th Dept: 46 AD3d 1457 (Erie)	denied 2/28/08 (Smith, J.)
People v Powell (James)	4th Dept: 46 AD3d 1458 (Erie)	denied 2/28/08 (Smith, J.)
People v Qasem	3d Dept: 39 AD3d 960 (Albany)	denied 2/26/08 (Jones, J.)
People v Ramirez	2d Dept: 43 AD3d 1086 (Queens)	denied 2/29/08 (Pigott, J.)
People v Ramos (Chauncy)	2d Dept: 45 AD3d 702 (Westchester)	denied 2/21/08 (Grafteo, J.)
People v Ramos (Joyce)	1st Dept: 45 AD3d 439 (NY)	denied 2/29/08 (Pigott, J.)
People v Reed (Billy)	1st Dept: 46 AD3d 285 (NY)	denied 2/20/08 (Ciparick, J.)
People v Reed (DaShaun)	2d Dept: 45 AD3d 610 (Kings)	denied 2/20/08 (Ciparick, J.)
People v Reilly	3d Dept: 46 AD3d 1108 (Broome)	denied 2/29/08 (Grafteo, J.)
People v Reyes	2d Dept: 45 AD3d 785 (Queens)	denied 2/26/08 (Read, J.)
People v Rivera (Carmelo)	1st Dept: 46 AD3d 303 (Bronx)	denied 2/29/08 (Pigott, J.)
People v Rivera (Edwin)	1st Dept: 46 AD3d 291 (Bronx)	denied 2/21/08 (Grafteo, J.)
People v Rivera (Hector)	1st Dept: 45 AD3d 467 (NY)	denied 2/29/08 (Pigott, J.)
People v Rivera (Isidro)	4th Dept: 45 AD3d 1249 (Monroe)	denied 2/20/08 (Ciparick, J.)
People v Rivera (Ray)	1st Dept: 45 AD3d 442 (NY)	denied 2/25/08 (Kaye, Ch.J.)
People v Roca	4th Dept: 46 AD3d 1396 (Oneida)	denied 2/28/08 (Grafteo, J.)
People v Rodriguez	1st Dept: 47 AD3d 406 (Bronx)	denied 2/28/08 (Smith, J.)
People v Romano	3d Dept: 45 AD3d 910 (Rensselaer)	denied 2/6/08 (Kaye, Ch.J.)
People v Rosenberg	1st Dept: 46 AD3d 357 (NY)	denied 2/29/08 (Grafteo, J.)
People v Ruiz	1st Dept: 44 AD3d 428 (Bronx)	denied 2/6/08 (Kaye, Ch.J.)

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People v Rusielewicz	2d Dept: 45 AD3d 704 (Kings)	denied 2/26/08 (Jones, J.)
People v Salado	1st Dept: 41 AD3d 252 (NY)	denied 2/19/08 (Ciparick, J.)
People v Sample	1st Dept: 45 AD3d 450 (NY)	denied 2/21/08 (Grafteo, J.)
People v Sanchez (Emmanuel)	1st Dept: 45 AD3d 500 (NY)	denied 2/29/08 (Jones, J.)
People v Sanchez (Gilbert)	1st Dept: 46 AD3d 484 (NY)	denied 2/15/08 (Grafteo, J.)
People v Santos	1st Dept: 45 AD3d 504 (NY)	denied 2/28/08 (Smith, J.)
People v Sawyer	2d Dept: 44 AD3d 970 (Kings)	denied 2/21/08 (Read, J.)
People v Saxon	App Div, 1st Dept: 2007 NY Slip Op 73887(U) (NY)	denied 2/29/08 (Jones, J.)
People v Schlick	1st Dept: 45 AD3d 436 (NY)	denied 2/29/08 (Pigott, J.)
People v Seeley	2d Dept: 44 AD3d 1077 (Kings)	denied 2/15/08 (Grafteo, J.)
People v Seth	1st Dept: 45 AD3d 450 (NY)	denied 2/26/08 (Jones, J.)
People v Sherald	3d Dept: 45 AD3d 973 (Broome)	denied 2/6/08 (Kaye, Ch.J.)
People v Shropshire	2d Dept: 45 AD3d 876 (Queens)	denied 2/29/08 (Jones, J.)
People v Siler	4th Dept: 45 AD3d 1403 (Monroe)	denied 2/20/08 (Ciparick, J.)
People v Simpkins	2d Dept: 45 AD3d 704 (Nassau)	denied 2/29/08 (Pigott, J.)
People v Small (Samel)	2d Dept: 45 AD3d 705 (Kings)	denied 2/25/08 (Kaye, Ch.J.)
People v Small (Samuel)	2d Dept: 45 AD3d 705 (Kings)	denied 2/25/08 (Kaye, Ch.J.)
People v Smith (Baron)	2d Dept: 44 AD3d 881 (Kings)	denied 2/20/08 (Ciparick, J.)
People v Smith (Lavonne)	2d Dept: 46 AD3d 583 (Kings)	denied 2/25/08 (Kaye, Ch.J.)
People v Smith (Mark)	4th Dept: 45 AD3d 1483 (Monroe)	denied 2/21/08 (Grafteo, J.)
People v Soyemi	1st Dept: 47 AD3d 431 (Bronx)	denied 2/29/08 (Grafteo, J.)
People v Stewart	1st Dept: 45 AD3d 415 (NY)	denied 2/15/08 (Grafteo, J.)
People v Stroman (Steve)	App Div, 4th Dept, 5/23/07 (Cayuga)	dismissed 2/21/08 (Read, J.)
People v Stroman (Steve)	App Div, 4th Dept, 7/23/07 (Cayuga)	dismissed 2/21/08 (Read, J.)

People v Swartz	1st Dept: 47 AD3d 111 (NY)	granted 2/28/08 (Ciparick, J.)
People v Terry	3d Dept: 44 AD3d 1157 (Chemung)	denied 2/25/08 (Kaye, Ch.J.)
People v Thomas (Christopher)	1st Dept: 45 AD3d 483 (NY)	denied 2/26/08 (Jones, J.)
People v Thomas (Roger)	1st Dept: 47 AD3d 415 (NY)	denied 2/26/08 (Smith, J.)
People v Thompson (Robert)	2d Dept: 45 AD3d 876 (Westchester)	denied 2/26/08 (Smith, J.)
People v Thompson (Walter)	4th Dept: 45 AD3d 1414 (Steuben)	denied 2/26/08 (Smith, J.)
People v Tolliver	4th Dept: 45 AD3d 1422 (Onondaga)	denied 2/19/08 (Smith, J.)
People v Torres	3d Dept: 45 AD3d 1054 (Montgomery)	denied 2/25/08 (Read, J.)
People v Townsend	2d Dept: 44 AD3d 970 (Kings)	denied 2/4/08 (Kaye, Ch.J.)
People v Trumbach	3d Dept: 31 AD3d 1054 (Broome)	denied 2/21/08 (Grafteo, J.)
People v Urena	2d Dept: 46 AD3d 714 (Queens)	denied 2/21/08 (Grafteo, J.)
People v Van Glahn	2d Dept: 44 AD3d 972 (Kings)	denied 2/26/08 (Jones, J.)
People v Vannoy	1st Dept: 48 AD3d 1308 (NY)	denied 2/14/08 (Jones, J.)
People v Velez	App Div, 2d Dept: 2007 NY Slip Op 85238(U) (Kings)	dismissed 2/28/08 (Smith, J.)
People v Vibbert	4th Dept: 48 AD3d 1091 (Cayuga)	denied 2/26/08 (Grafteo, J.)
People v Wai Yin Leung	1st Dept: 45 AD3d 389 (NY)	denied 2/21/08 (Smith, J.)
People v Walker	2d Dept: 45 AD3d 878 (Kings)	denied 2/26/08 (Jones, J.)
People v Weaver	2d Dept: 45 AD3d 787 (Kings)	denied 2/25/08 (Kaye, Ch.J.)
People v White	4th Dept: 45 AD3d 1423 (Erie)	denied 2/25/08 (Read, J.)
People v Whitehead	2d Dept: 46 AD3d 715 (Nassau)	denied 2/25/08 (Kaye, Ch.J.)
People v Wilcox	4th Dept: 45 AD3d 1320 (Ontario)	denied 2/29/08 (Jones, J.)
People v Wilder	1st Dept: 46 AD3d 256 (Bronx)	denied 2/21/08 (Smith, J.)
People v Williams (Dominick)	2d Dept: 46 AD3d 585 (Kings)	denied 2/29/08 (Pigott, J.)
People v Williams (Timothy)	2d Dept: 44 AD3d 1080 (Queens)	denied 2/14/08 (Jones, J.)
People v Wilson (Deshann)	4th Dept: 46 AD3d 1387 (Livingston)	denied 2/28/08 (Smith, J.)

People v Wilson (Marvin)	1st Dept: 45 AD3d 407 (NY)	denied 2/8/08 (Pigott, J.)
People v Worthy	4th Dept: 46 AD3d 1382 (Erie)	denied 2/21/08 (Smith, J.)
People v Wray	1st Dept: 44 AD3d 551 (NY)	denied 2/21/08 (Read, J.)
People v Yacoubou	App Div, 1st Dept: 2007 NY Slip Op 64094(U) (NY)	dismissed 2/26/08 (Grafteo, J.)
People v Zayas	2d Dept: 44 AD3d 1080 (Queens)	denied 2/25/08 (Kaye, Ch.J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

Decisions of Appellate Division Justices*

(February 1, 2008 through February 29, 2008)

People v Jones (Lionel)	4th Dept: 48 AD3d 1116 (Erie)	granted 2/27/08 (Pine J.)
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[886 NE2d 142, 856 NYS2d 520]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MAR-
COS URBAEZ, Appellant.

Argued February 12, 2008; decided March 13, 2008

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Term of the Supreme Court in the First Judicial Department, entered January 31, 2007. The Appellate Term affirmed a judgment of the Supreme Court, Bronx County (Diane Kiesel, J.), which had convicted defendant, after a nonjury trial, of attempted aggravated harassment in the second degree and harassment in the second degree.

People v Urbaez, 14 Misc 3d 135(A), affirmed.

HEADNOTE

Crimes — Right to Jury Trial — Class B Misdemeanor

Defendant was not denied his right to a jury trial when the trial court granted the People's motion to reduce, over defendant's objection, a charge of aggravated harassment in the second degree (an A misdemeanor) to attempted aggravated harassment in the second degree (a B misdemeanor), and after a

* Includes only applications that were granted.

bench trial defendant was convicted and sentenced to a conditional discharge with an order of protection. No right to a jury trial attaches when maximum incarceration is not more than six months, and New York City criminal courts must conduct a bench trial on such misdemeanor charges (CPL 340.40 [2]). Also, the prosecutor had broad discretion to decide what crimes to charge in a case such as defendant's, where he was charged with making one harassing telephone call.

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (*Laura Lieberman Cohen* of counsel), for appellant.

Robert T. Johnson, District Attorney, Bronx (*Noah Chamoy*, *Allen Saperstein* and *Joseph N. Ferdenzi* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Term should be affirmed.

On or about May 15, 2004, defendant placed a telephone call to the mother of his two teenage boys in which he threatened to withhold payment of child support, beat her, knock out her teeth and break her face. Based on that call, defendant was charged with aggravated harassment in the second degree, an A misdemeanor under Penal Law § 240.30 (1), and harassment in the second degree, a violation under Penal Law § 240.26 (1).

On the trial date some months later, the People moved to reduce the A misdemeanor to attempted aggravated harassment in the second degree, a B misdemeanor. Over defendant's objection that the People were reducing the charge simply to deny him his right to a trial by jury, the judge permitted reduction to the lesser-included offense. The People then renewed their plea offer of a violation conditioned on compliance with an order of protection, which defendant rejected. After a bench trial, defendant was convicted of both offenses and sentenced to a conditional discharge with an order of protection. Defendant now complains that he was wrongfully stripped of his right to a jury.

It is well established that a defendant's right to a jury trial attaches only to "serious offenses," not to "petty crimes" (*Callan v Wilson*, 127 US 540 [1888]), the determining factor being length of exposure to incarceration (*Matter of Morgenthau v Erlbaum*, 59 NY2d 143, 153 [1983]). No jury right attaches when maximum incarceration is six months or less (*Baldwin v New York*, 399 US 66 [1970]). When the charge is a misdemeanor for

which the authorized term of imprisonment is not more than six months—which includes all B misdemeanors having a maximum jail sentence of three months—New York City criminal courts must conduct a bench trial (CPL 340.40 [2]). Especially in New York City, with its high volume of misdemeanor cases, this statute furthers the important public interest of effective judicial administration.

The law also provides the prosecutor with broad discretion to decide what crimes to charge (*People v Eboli*, 34 NY2d 281 [1974]), including reducing a charge when appropriate. Beyond a desire to promote judicial efficiency, there are valid reasons a prosecutor might file an information for a more serious crime and subsequently seek to reduce the charge. A defendant's criminal history or prior relationship with a victim, the victim's own wishes, and the strength and veracity of the facts underlying the charge are examples of the many considerations that might, upon further investigation, lead a prosecutor to reduce a charge.

Here, defendant was charged with making one harassing telephone call. Following the reduction to the B misdemeanor, the prosecutor conveyed a plea offer of a violation with a conditional discharge and an order of protection. Even after defendant's conviction, the prosecutor's sentencing recommendation did not include incarceration. The judge, in turn, recognized the relatively nonserious nature of the crime when she sentenced defendant to a conditional discharge.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[886 NE2d 775, 857 NYS2d 14]

In the Matter of DAVID F. JUNG.

Decided March 13, 2008

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c) of whether Honorable David F. Jung should be suspended from his office of Judge of the Family Court, Fulton County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

HEADNOTE**Judges — Suspension from Office**

Upon consideration by the Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 (e), (g) and Judiciary Law § 44 (8) (a), (c) of whether a Family Court Judge should be suspended from office, it was determined that the Judge be suspended, with pay, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable David F. Jung is suspended with pay, effective immediately, from the office of Judge of the Family Court, Fulton County, pending disposition of his request for review of a determination by the State Commission on Judicial Conduct.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[886 NE2d 762, 857 NYS2d 1]

In the Matter of MITCHELL SCHORR, Respondent, v NEW YORK CITY DEPARTMENT OF HOUSING PRESERVATION AND DEVELOPMENT et al., Appellants.

Argued February 12, 2008; decided March 13, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 26, 2007. The Appellate Division affirmed an order and judgment (one paper) of the Supreme Court, New York County (Louis B. York, J.), entered in a proceeding pursuant to CPLR article 78, which had granted a petition to annul respondent Department of Housing Preservation and Development's determination granting respondent East Midtown Plaza Housing Company a certificate of eviction and permanently stayed any proceedings based on that certificate of eviction.

Matter of Schorr v New York City Dept. of Hous. Preserv. & Dev., 41 AD3d 303, reversed.

HEADNOTE**Public Housing — Succession Rights — Estoppel**

Respondents Department of Housing Preservation and Development (HPD) and a limited-profit housing company were not estopped from contesting petitioner tenant's right of succession to a Mitchell-Lama apartment even

though the company had acquiesced in the illegal occupancy for over four years. The Mitchell-Lama Law prescribes strict guidelines for tenant eligibility and succession, to which the company must adhere (28 RCNY § 3-02 [p] [8] [ii]). HPD, the governmental agency responsible for administering the Mitchell-Lama program (Private Housing Finance Law § 2 [15]; New York City Charter § 1802 [6] [d]), was statutorily required to enforce the Mitchell-Lama Law and regulations regardless of any actions or acquiescence by an owner. Invoking estoppel against HPD and the company would impermissibly prevent HPD from executing its statutory duty to provide Mitchell-Lama housing only to individuals who meet the specified eligibility requirements.

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Karen M. Griffin* and *Francis F. Caputo* of counsel), for New York City Department of Housing Preservation and Development, appellant.

Gallet Dreyer & Berkey, LLP, New York City (*Michelle P. Quinn* and *David L. Berkey* of counsel), for East Midtown Plaza Housing Company, Inc., appellant.

Rosenberg & Estis, P.C., New York City (*Jeffrey Turkel* of counsel), for respondent.

Andrew M. Cuomo, Attorney General, New York City (*Robert C. Weisz*, *Barbara D. Underwood* and *Michael S. Belohlavek* of counsel), for New York State Division of Housing and Community Renewal, amicus curiae.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, and the petition dismissed.

In 1987, petitioner, his parents and brother moved into a two-bedroom Mitchell-Lama apartment in Manhattan.¹ Because petitioner was 14 years old at the time, he was the only member of his family not listed as a tenant of record. Petitioner left the apartment for college at some point in the early 1990s and there

1. The Mitchell-Lama Law (Private Housing Finance Law article II) was enacted in 1955 to offer private housing companies the incentive to develop low- and moderate-income housing (see *Matter of KSLM-Columbus Apts., Inc. v New York State Div. of Hous. & Community Renewal*, 5 NY3d 303, 308 [2005]). “The program encourages such housing by offering State and municipal assistance to developers in the form of long-term, low-interest government mortgage loans and real estate tax exemptions. In return for these financial benefits, developers agree to regulations concerning rent, profit, disposition of property and tenant selection” (*Matter of Columbus Park Corp. v Department of Hous. Preserv. & Dev. of City of N.Y.*, 80 NY2d 19, 23 [1992] [citations omitted]).

is no record of his return to the apartment until 1999, when his name first appeared on the apartment's annual income report. By February 2000, the tenants of record had vacated the apartment, leaving petitioner as the sole occupant. Because he did not reside in the apartment for two consecutive years prior to 2000, the year the last tenants of record (his parents) vacated, petitioner did not qualify for successor rights to the apartment under the Mitchell-Lama Law, but nevertheless remained.

Respondent East Midtown Plaza Housing Company, Inc., a limited-profit housing company incorporated under the Mitchell-Lama Law, owns and operates the apartment subject to the regulations and supervisory authority of respondent Department of Housing Preservation and Development (HPD). Although petitioner was no longer authorized to reside in the apartment, East Midtown apparently acquiesced in petitioner's occupancy.² Following two successful lawsuits by petitioner against East Midtown in 2001 and 2004, East Midtown initiated eviction proceedings against petitioner in December 2004. Petitioner attempted unsuccessfully to submit an application for successor rights and in July 2005, HPD affirmed the eviction because petitioner could not establish that he qualified for such rights.

In September 2005, East Midtown initiated a holdover proceeding against petitioner in Civil Court. In response, petitioner commenced this CPLR article 78 proceeding seeking to annul HPD's eviction determination. Supreme Court annulled the determination, holding, among other things, that because of East Midtown's apparent consent to the tenancy, HPD and East Midtown were estopped from evicting petitioner. The Appellate Division affirmed, and we now reverse.

The Mitchell-Lama Law prescribes strict guidelines for tenant eligibility and succession, to which East Midtown must adhere (*see* 28 RCNY § 3-02 [p] [8] [ii]). HPD is the supervising governmental agency responsible for administering the Mitchell-Lama program in New York City (*see* Private Housing Finance Law § 2 [15]; New York City Charter § 1802 [6] [d]). Thus, HPD is statutorily required to enforce the Mitchell-Lama Law and regulations regardless of any actions or acquiescence by East Midtown and the other limited-profit housing companies it supervises.

2. There is no evidence in the record that HPD knew of petitioner's purported "tenancy" during the time period in question.

It is well settled that “estoppel cannot be invoked against a governmental agency to prevent it from discharging its statutory duties” (*Matter of New York State Med. Transporters Assn. v Perales*, 77 NY2d 126, 130 [1990]; see also *Matter of Wedinger v Goldberger*, 71 NY2d 428, 441 [1988], *cert denied* 488 US 850 [1988]; *Matter of E.F.S. Ventures Corp. v Foster*, 71 NY2d 359, 369-370 [1988]; *Matter of Parkview Assoc. v City of New York*, 71 NY2d 274, 282 [1988], *cert denied* 488 US 801 [1988]; *Scruggs-Leftwich v Rivercross Tenants’ Corp.*, 70 NY2d 849, 852 [1987]). Here, it is clear that petitioner did not meet the eligibility requirements for succession rights to the apartment and was, therefore, an illegal tenant. Thus, invoking estoppel against HPD and East Midtown would impermissibly prevent HPD from executing its statutory duty to provide Mitchell-Lama housing only to individuals who meet the specified eligibility requirements.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

In the Matter of AC I SHORE ROAD, LLC, Respondent, v INCORPORATED VILLAGE OF GREAT NECK et al., Appellants, et al., Respondents.

Submitted January 7, 2008; decided March 13, 2008

Reported below, 43 AD3d 439.

Motion to enlarge the record on appeal denied. Motion for leave to appeal denied.

CLARE C. BASSILE, Respondent, v SCOTT O. MYERS, Appellant.

Submitted February 19, 2008; decided March 13, 2008

Reported below, 2007 NY Slip Op 80565(U), 74431(U).

Motion for reargument of motion for leave to appeal denied [see 9 NY3d 1025 (2007)].

In the Matter of HASAN MURAD OSIRIS AHAD BEYAH, Appellant.

Submitted December 17, 2007; decided March 13, 2008

Motion for reargument of motion for leave to appeal denied [see 9 NY3d 814 (2007)].

BRIGGS AVENUE LLC, Appellant, v INSURANCE CORPORATION OF
HANNOVER, Respondent.

Decided March 13, 2008

Certification of question by the United States Court of Appeals for the Second Circuit, pursuant to section 500.27 of the Rules of Practice of the Court of Appeals (22 NYCRR 500.27), accepted and the issues presented are to be considered after briefing and argument.

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of AMIL DINSIO, Appellant, v SUPREME COURT, APPELLATE DIVISION, THIRD JUDICIAL DEPARTMENT, COMMITTEE ON PROFESSIONAL STANDARDS, Respondent.

Submitted January 22, 2008; decided March 13, 2008

Reported below, 2007 NY Slip Op 83834(U), 79369(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the orders appealed from do not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

LOUIS S. EDERER, Respondent, v STEVEN R. GURSKY et al., Appellants.

Submitted February 11, 2008; decided March 13, 2008

Reported below, 35 AD3d 166.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [see 9 NY3d 514 (2007)].

FAIR PRICE MEDICAL SUPPLY CORP., as Assignee of CESAR NIVELO, Respondent, v TRAVELERS INDEMNITY COMPANY, Appellant.

Submitted March 10, 2008; decided March 13, 2008

Reported below, 42 AD3d 277.

Motion by New York Insurance Association, Inc. for leave to appear amicus curiae on the appeal herein granted only to the

extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of DONALD FEOLA, Respondent, v PATRICK J. CARROLL et al., Appellants.

Submitted February 25, 2008; decided March 13, 2008

Reported below, 25 AD3d 697.

Motion by City of New York for leave to file a brief amicus curiae on the appeal herein granted. Two copies of the brief must be served and 24 copies filed within seven days.

In the Matter of WOODROW FLEMMING, Appellant, v CHARLES TEJADA, as Justice of the Supreme Court of the State of New York, et al., Respondents.

Submitted January 14, 2008; decided March 13, 2008

Reported below, 43 AD3d 809.

Motion for reargument denied [*see* 9 NY3d 1003 (2007)].

GREAT NORTHERN INSURANCE COMPANY et al., Plaintiffs, v KOBAND CORPORATION, Appellant, and SAFEGUARD INSURANCE COMPANY et al., Respondents.

Submitted October 15, 2007; decided March 13, 2008

Reported below, 40 AD3d 462.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

JERICHO WATER DISTRICT, Respondent, v ONE CALL USERS COUNCIL, INC., et al., Appellants.

Submitted March 10, 2008; decided March 13, 2008

Reported below, 37 AD3d 136.

Motion to strike portions of respondent's brief denied.

CHRISTINE KOPSACHILIS, Respondent, v 130 EAST 18 OWNERS CORP. et al., Appellants.

Submitted February 25, 2008; decided March 13, 2008

Reported below, 43 AD3d 744.

Motion by Riverbay Corporation for leave to file a letter brief amicus curiae on the appeal herein granted and the letter brief is accepted as filed.

JOSEPH MONTESANO, Individually and as President of Rochester Firefighters, Inc., Local 1071, IAFF, AFL-CIO, as Trustee of Rochester Firefighters Association Mutual Aid Fund and on Behalf of All Other Individuals Providing Fire Protection to City of Rochester Similarly Situated, et al., Appellants, v FLOYD A. MADISON, as Chief of Fire Department of City of Rochester and as Administrator of Firefighters Insurance Fund of City of Rochester, et al., Defendants, and CITY OF ROCHESTER, Respondent.

Submitted January 7, 2008; decided March 13, 2008

Reported below, 45 AD3d 1352.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GENARO CAMPOS, Appellant.

Submitted March 3, 2008; decided March 13, 2008

Reported below, 2007 NY Slip Op 83425(U).

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOCELYN LOUISE CHARPENTIER, Appellant.

Submitted March 10, 2008; decided March 13, 2008

Reported below, 44 AD3d 680.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DWIGHT GILES, Appellant.

Submitted March 10, 2008; decided March 13, 2008

Reported below, 47 AD3d 88.

Motion for assignment of counsel granted and Susanna De La Pava, Esq., 110 Wall Street, 11th Floor, New York, NY 10005 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v DELON LUCAS, Appellant.

Submitted February 19, 2008; decided March 13, 2008

Reported below, 43 AD3d 1084.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WILLIAM SHANKLE, Appellant.

Submitted February 25, 2008; decided March 13, 2008

Reported below, 46 AD3d 924.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 denied as unnecessary and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v PANAGIOTIS SOURIS, Also Known as PETER SOURIS, Appellant.

Submitted February 19, 2008; decided March 13, 2008

Reported below, 46 AD3d 711.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

LEONOR DATIL PEREZ, Appellant, v TIME MOVING AND STORAGE, INC., Respondent.

Submitted January 7, 2008; decided March 13, 2008

Reported below, 2007 NY Slip Op 83210(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

VILLAGE OF POMONA, Appellant, v TOWN OF RAMAPO et al., Respondents.

Submitted January 7, 2008; decided March 13, 2008

Reported below, 41 AD3d 837.

Motion for reargument of motion for leave to appeal denied [see 9 NY3d 981 (2007)].

BRAD S. RALIN, Appellant, v CITY OF NEW YORK et al., Respondents.

Submitted December 19, 2007; decided March 13, 2008

Reported below, 44 AD3d 838.

Motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay dismissed as academic.

JOSE RAMIREZ et al., Appellants, v MARK T. MILLER et al., Defendants, and EICHNER RUDD MANAGEMENT ASSOCIATES, LTD., Respondent.

Submitted December 17, 2007; decided March 13, 2008

Reported below, 41 AD3d 298.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

DEONARINE RAMNARAIN, Appellant, v CHANDRADAT RAMNARAIN, Respondent, et al., Defendant.

Submitted January 28, 2008; decided March 13, 2008

Reported below, 46 AD3d 655.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NORMA RESHEVSKY et al., Appellants, v UNITED WATER NEW YORK, INC., Respondent.

Submitted January 28, 2008; decided March 13, 2008

Reported below, 46 AD3d 532.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SEASIA D. MR. ANONYMOUS et al., Appellants; KAREEM W., Respondent.

Submitted January 28, 2008; decided March 13, 2008

Reported below, 46 AD3d 878.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal granted.

SOLOW MANAGEMENT CORP., Respondent, v STEVEN TANGER et al., Respondents. JEROME JANOF, Nonparty Appellant.

Submitted February 19, 2008; decided March 13, 2008

Reported below, 38 AD3d 49.

Motion, insofar as it seeks to strike Addendum A to appellant's reply brief and references thereto in the reply brief,

denied; motion, insofar as it seeks consideration of the arguments contained in paragraphs 28-31 of the Brown affirmation, granted.

TAG 380, LLC, Respondent, v COMMET 380, INC., Appellant and Third-Party Plaintiff. GMAC COMMERCIAL MORTGAGE CORPORATION, Third-Party Defendant-Intervenor.

Submitted February 19, 2008; decided March 13, 2008

Reported below, 40 AD3d 1.

Motion to enlarge the record on appeal granted. Cross motion to strike portions of appellant's reply brief denied.

[886 NE2d 783, 857 NYS2d 21]

In the Matter of DAVID GROSS.

Decided March 18, 2008

SUMMARY

CONSIDERATION, by the Court of Appeals, on its own motion pursuant to NY Constitution, article VI, § 22 (f) and Judiciary Law § 44 (8) of whether Honorable David Gross should be removed from his office of Judge of the Nassau County District Court, Tenth Judicial District.

HEADNOTE

Judges — Removal from Office

Upon consideration by the Court of Appeals on its own motion, pursuant to NY Constitution, article VI, § 22 (f) and Judiciary Law § 44 (8) of whether a Nassau County District Court Judge should be removed from office, it was determined that the Judge be removed, effective immediately.

OPINION OF THE COURT

On the Court's own motion, it is determined that Honorable David Gross is removed, effective immediately, from his office of Judge of the Nassau County District Court, Tenth Judicial District, pursuant to New York Constitution, article VI, § 22 (f) and Judiciary Law § 44 (8).

Concur: Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[886 NE2d 154, 856 NYS2d 532]

DANIELLE BERNSTEIN, an Infant, by Her Father and Natural Guardian, ROGER BERNSTEIN, et al., Appellants, v PENNY WHISTLE TOYS, INC., et al., Respondents and Third-Party Plaintiffs. (And a Third-Party Action.)

Argued February 14, 2008; decided March 18, 2008

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered May 1, 2007. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, New York County (Jane S. Solomon, J.), which had granted defendants' motion for summary judgment dismissing the complaint and third-party defendant's motion for summary judgment dismissing the complaint and the third-party action.

Bernstein v Penny Whistle Toys, Inc., 40 AD3d 224, affirmed.

HEADNOTE

Animals — Knowledge of Vicious Propensity

In a personal injury action arising from a dog bite, where there was no evidence that the dog's owner had any knowledge of its vicious propensities, the Appellate Division correctly affirmed the dismissal of the complaint against defendants. When harm is caused by a domestic animal, its owner's liability is determined solely by application of the rule articulated in *Collier v Zambito* (1 NY3d 444, 447 [2004]) that a plaintiff bitten by a dog may not recover where he or she is unable to show that the dog's owner knew or should have known of the dog's vicious propensities. Claims against the third-party defendant were also properly dismissed because there was no evidence that that party was negligent.

APPEARANCES OF COUNSEL

Rappaport, Glass, Greene & Levine, LLP, New York City (*James L. Forde* of counsel), for appellants.

Carol R. Finocchio, New York City, *Lisa M. Comeau*, and *Law Offices of John P. Humphreys*, for respondents.

Hawkins, Feretic, Daly & Maroney, New York City (*Brian J. Daly* of counsel), for third-party defendant-respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed with costs.

We held in *Collier v Zambito* (1 NY3d 444, 447 [2004]) that a plaintiff bitten by a dog could not recover because he was unable to show that the dog's owner knew or should have known of the dog's "vicious propensities." In *Bard v Jahnke* (6 NY3d 592, 599 [2006]), we held that "when harm is caused by a domestic animal, its owner's liability is determined solely by application of the rule articulated in *Collier*."

Since there is no evidence in this case that the dog's owner had any knowledge of its vicious propensities, the Appellate Division was correct in affirming the dismissal of the complaint against defendants. Plaintiff's claims against third-party defendant were also properly dismissed, because there is no evidence that third-party defendant was negligent.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

In the Matter of ALEXIS D., an Infant. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JANICE P., Respondent, and BARRIE D., Appellant.

Submitted February 11, 2008; decided March 18, 2008

Reported below, 46 AD3d 1450.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

BERNADETTE PANZELLA, P.C., Appellant, v GERARD D. DeSANTIS, Respondent. ADAM STANGER, D.C., P.C., Nonparty Respondent.

Submitted February 11, 2008; decided March 18, 2008

Reported below, 36 AD3d 734.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [see 9 NY3d 816 (2007)].

In the Matter of CATHEDRAL PROPERTIES CORP., Appellant, v
JACQUES BLINBAUM et al., Respondents.

Submitted January 22, 2008; decided March 18, 2008

Reported below, 44 AD3d 852.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

DELPHI RESTORATION CORPORATION et al., Respondents, v SUN-
SHINE RESTORATION CORPORATION, Defendant, and UTICA
FIRST INSURANCE COMPANY, Appellant.

Submitted February 4, 2008; decided March 18, 2008

Reported below, 43 AD3d 851.

Motion for reargument of motion for leave to appeal denied [see 9 NY3d 1002 (2007)].

RUCHAMA GAMIEL, Respondent, v CURTIS & RIESS-CURTIS, P.C.,
et al., Appellants. (And a Third-Party Action.)

Submitted February 11, 2008; decided March 18, 2008

Reported below, 44 AD3d 327.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the Estate of JULIANA GUCU, Deceased. VIORIKA
ANKA, Respondent; JOHN GUCU ROBERTS, Appellant.

Submitted January 22, 2008; decided March 18, 2008

Reported below, 2007 NY Slip Op 84549(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

RONALD J. HARRINGTON et al., Appellants-Respondents, v MAR-
IAN GAGE, Respondent-Appellant.

Submitted January 28, 2008; decided March 18, 2008

Reported below, 43 AD3d 1393.

Motions for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

ELISA JIMENEZ, Appellant, v PETER ACHESON et al., Respondents.

Submitted January 22, 2008; decided March 18, 2008

Reported below, 42 AD3d 831.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

YOLANDA MAGRIZ, Appellant, v ST. BARNABAS HOSPITAL et al., Respondents, et al., Defendants.

Submitted January 28, 2008; decided March 18, 2008

Reported below, 43 AD3d 331.

Motion, insofar as it seeks leave to appeal from that part of the Appellate Division order that pertains to defendants Homer, Glenn and Zambito, denied; motion, insofar as it otherwise seeks leave to appeal from the Appellate Division order, dismissed upon the ground that the remainder of such order does not finally determine the action within the meaning of the Constitution.

PATRICIA PASQUA, Respondent, v HANDELS-EN PRODUCTIEMAATSCHAPPIJ DE SCHOUW, B.V., Also Known as HANDELS-EN PRODUCTIEMAATSCHAPPIJ “DE SCHOUW” B.V., et al., Appellants, et al., Defendant.

Submitted February 4, 2008; decided March 18, 2008

Reported below, 43 AD3d 647.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for a stay dismissed as academic.

In the Matter of ELLA QUINN et al., Appellants, v JOHN A. JOHNSON, as Commissioner of New York State Office of Children and Family Services, et al., Respondents.

Submitted February 25, 2008; decided March 18, 2008

Reported below, 45 AD3d 1377.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements. Motion for a stay denied [*see* 9 NY3d 818 (2007)].

In the Matter of the Foreclosure of Tax Liens by CITY OF RENSSELAER. CITY OF RENSSELAER, Respondent; ROBERT E. HARRIS, Appellant.

Submitted January 14, 2008; decided March 18, 2008

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for a stay dismissed as academic.

ROYAL YORK OWNERS CORP. et al., Appellants, v ROYAL YORK ASSOCIATES, L.P., Respondent. (And Another Action.)

Submitted December 31, 2007; decided March 18, 2008

Reported below, 43 AD3d 357.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as modified Supreme Court's order in the second action, dismissed upon the ground that such portion of the order does not finally determine that action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

WELLS FARGO BANK MINNESOTA, NATIONAL ASSOCIATION, Respondent, v BERNICE PEREZ, Appellant.

Submitted January 28, 2008; decided March 18, 2008

Reported below, 41 AD3d 590.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]).

[886 NE2d 155, 856 NYS2d 533]

EUGENIA SWIDERSKA, Appellant, v New York University et al.,
Respondents.

Decided March 20, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered November 8, 2006. The Appellate Division affirmed an order of the Supreme Court, Kings County (Laura Jacobson, J.), which had granted defendants' respective cross motions for summary judgment on the issue of liability pursuant to Labor Law § 240 (1) and denied plaintiff's motion for summary judgment on that cause of action.

Swiderska v New York Univ., 34 AD3d 445, reversed.

HEADNOTE

Labor — Safe Place to Work

Plaintiff was entitled to summary judgment on her Labor Law § 240 (1) cause of action to recover damages for injuries sustained when she fell while cleaning windows as part of a commercial cleaning contract. Commercial window cleaning is encompassed within Labor Law § 240 (1) if it created the type of elevation-related risk that the statute was intended to address. Here, plaintiff established that she was injured while cleaning 10-foot-high windows in a college dormitory with a rag, which required her to climb upon pieces of furniture in order to complete her work, creating an elevation-related risk, and she was not provided a ladder, scaffold or other safety device of the kind contemplated under the statute.

APPEARANCES OF COUNSEL

Profeta & Eisenstein, New York City (*Fred R. Profeta, Jr.*, of counsel), for appellant.

Wade Clark Mulcahy, New York City (*Dennis M. Wade* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed, with costs, plaintiff's motion for partial summary judgment as to liability on her Labor Law § 240 (1) cause of action should be granted and defendants' cross motions for summary judgment should be denied.

As part of a commercial cleaning contract, plaintiff's employer instructed her to clean the 10-foot-high interior windows in a dormitory building, providing her with only a rag and window

washing solution to complete the task. When plaintiff asked for a ladder so that she could reach the tops of the windows, she was instructed to climb on furniture instead. While standing on a bed in an attempt to clean a window, plaintiff fell to the floor, suffering multiple fractures and other injuries. This Labor Law § 240 (1) action ensued.

The parties cross-moved for summary judgment on the issue of liability, with both lower courts granting judgment in favor of defendants on the theory that the activity in which plaintiff was engaged constituted routine maintenance not covered by Labor Law § 240 (1). We disagree and conclude that plaintiff was entitled to summary judgment on the issue of liability. In *Broggy v Rockefeller Group, Inc.* (8 NY3d 675 [2007]), we held that commercial window cleaning comparable to the activity at issue here is encompassed within Labor Law § 240 (1) if it created the type of elevation-related risk that the statute was intended to address. In this case, plaintiff established that she was injured while cleaning 10-foot-high windows in a college dormitory with a rag, which required her to climb upon pieces of furniture in order to complete her work—creating an elevation-related risk—and she was not provided a ladder, scaffold or other safety device of the kind contemplated under the statute.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[886 NE2d 768, 857 NYS2d 7]

In the Matter of TOWN OF RYE et al., Appellants, v NEW YORK
STATE BOARD OF REAL PROPERTY SERVICES et al., Respon-
dents.

Argued February 5, 2008; decided March 20, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 20, 2007, in a proceeding brought pursuant to CPLR article 78 (initiated in the Appellate Division pursuant to RPTL 1218) to review a determina-

tion by respondent State Board of Real Property Services not to establish a segment-special equalization rate for respondent City of Rye segment of the Rye Neck Union Free School District. The Appellate Division granted that branch of respondent State Board's motion which was to dismiss the proceeding and a separate motion of respondent City of Rye, and dismissed the proceeding.

Matter of Town of Rye v New York State Bd. of Real Prop. Servs., 2007 NY Slip Op 63497(U), affirmed.

HEADNOTE

Parties — Capacity to Sue

Petitioner Town, which was within a certain school district, and petitioner town taxpayer lacked capacity to bring a proceeding contesting a determination by respondent State Board of Real Property Services not to establish a segment-special equalization rate for respondent City, which was located in the same school district. RPTL 1218, which authorized judicial review of state equalization rates, expressly limited those entitled to seek judicial review to directly affected municipalities whose own "rate or rates were established" by the State Board. Neither the Town nor the taxpayer fell within this class of parties. Assuming the individual taxpayer fulfilled the requirements for common-law standing, jurisdiction to entertain an action based on common-law standing would lie in Supreme Court, not the Appellate Division. Petitioner town taxpayer's constitutional challenge to RPTL 1218 was not raised in the amended petition, and therefore was not preserved for review in the Court of Appeals.

APPEARANCES OF COUNSEL

DelBello Donnellan Weingarten Wise & Wiederkehr, LLP, White Plains (*Gregory Spaun, Brian T. Belowich and Michael J. Schwarz* of counsel), for appellants.

Andrew M. Cuomo, Attorney General, New York City (*Cecelia Chang, Barbara D. Underwood and Michael S. Belohlavek* of counsel), for New York State Board of Real Property Services, respondent.

Huff Wilkes LLP, Tarrytown (*John J. Loveless* of counsel), for City of Rye, respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

The Town of Rye and a Town of Rye taxpayer commenced this CPLR article 78 proceeding to challenge the State Board of Real Property Services' decision not to establish a segment-special equalization rate for the City of Rye. Judicial review of

state equalization rates is governed by section 1218 of the Real Property Tax Law, which provides that an action may be commenced “in the appellate division of the supreme court in the manner provided by [article 78] upon application of *the county, city, town or village for which the rate or rates were established*” (emphasis added). In *Matter of Town of Riverhead v New York State Bd. of Real Prop. Servs.* (5 NY3d 36, 43 [2005]), we concluded that, “[i]n light of the express limitation set forth in RPTL 1218,” a municipality lacks the capacity to contest a segment-special equalization rate established by the State Board for a different municipality within the same school district. Citing *Town of Riverhead*, the Appellate Division granted the Board’s and the City’s motions to dismiss this proceeding on the ground that both petitioners lacked capacity to sue under section 1218.

As we emphasized in *Town of Riverhead*, RPTL 1218 expressly limits those entitled to seek judicial review to directly affected municipalities whose own “rate or rates were established” by the State Board. Neither the Town nor the individual taxpayer falls within this class of parties. Next, assuming the individual taxpayer fulfills the requirements for common-law standing, jurisdiction to entertain an action based on common-law standing would lie in Supreme Court, not the Appellate Division. Finally, the individual taxpayer’s constitutional challenge to RPTL 1218 was not raised in the amended petition, and therefore is not preserved for our review.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, with costs, in a memorandum.

In the Matter of JOSHUA BERNSTEIN, a Disbarred Attorney, Appellant. GRIEVANCE COMMITTEE FOR THE SECOND AND ELEVENTH JUDICIAL DISTRICTS, Respondent.

Submitted March 10, 2008; decided March 20, 2008

Reported below, 2007 NY Slip Op 83939(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of ISAIAH BROWN, Appellant, v GLENN S. GOORD,
as Commissioner of Correctional Services, Respondent.

Submitted February 11, 2008; decided March 20, 2008

Reported below, 45 AD3d 930.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution and is not an order of the type provided for in CPLR 5602 (a) (2). Motion for poor person relief dismissed as academic.

In the Matter of KENT W. DAVENPORT, Respondent, v JEFFREY
STEIN, Appellant.

Submitted March 10, 2008; decided March 20, 2008

Reported below, 45 AD3d 298.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of DOMINICK GIAQUINTO, Appellant, v COMMISSIONER OF NEW YORK STATE DEPARTMENT OF HEALTH, Respondent, et al., Respondent.

Submitted March 17, 2008; decided March 20, 2008

Reported below, 39 AD3d 922.

Motion by Peter Vollmer, Esq. for leave to appear amicus curiae on the appeal herein granted only to the extent that a revised brief, with the motion exhibits attached thereto, may be served and filed. Three copies of such brief must be served and an original and 24 copies filed within seven days.

In the Matter of DOMINICK GIAQUINTO, Appellant, v COMMISSIONER OF NEW YORK STATE DEPARTMENT OF HEALTH, Respondent, et al., Respondent.

Submitted March 17, 2008; decided March 20, 2008

Reported below, 39 AD3d 922.

Motion by National Center for Law and Economic Justice, Inc. for leave to appear amicus curiae on the appeal herein

granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

In the Matter of DOMINICK GIAQUINTO, Appellant, v COMMISSIONER OF NEW YORK STATE DEPARTMENT OF HEALTH, Respondent, et al., Respondent.

Submitted March 17, 2008; decided March 20, 2008

Reported below, 39 AD3d 922.

Motion by Empire Justice Center for leave to appear amicus curiae on the appeal herein granted only to the extent that the proposed brief is accepted as filed. Three copies of the brief must be served and an original and 24 copies filed within seven days.

ELAINE PACHTER, Respondent, v BERNARD HODES GROUP, INC., Appellant.

Submitted March 17, 2008; decided March 20, 2008

Motion by National Retail Federation for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

ELAINE PACHTER, Respondent, v BERNARD HODES GROUP, INC., Appellant.

Submitted March 17, 2008; decided March 20, 2008

Motion by Securities Industry and Financial Markets Association for leave to appear amicus curiae on consideration of the certified questions herein granted only to the extent that the proposed brief is accepted as filed. Two copies of the brief must be served and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant-Respondent, v ALFRED FORD, Respondent-Appellant.

Submitted March 17, 2008; decided March 20, 2008

Reported below, 44 AD3d 515.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the respondent-appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FATIN JOHNSON, Appellant.

Submitted March 17, 2008; decided March 20, 2008

Reported below, 43 AD3d 288.

Motion by Innocence Project for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FATIN JOHNSON, Appellant.

Submitted March 17, 2008; decided March 20, 2008

Reported below, 43 AD3d 288.

Motion by Legal Aid Society et al. for leave to file a brief amici curiae on the appeal herein granted and the proposed brief is accepted as filed.

In the Matter of THE PEOPLE OF THE STATE OF NEW YORK, by ELIOT SPITZER, as Attorney General, Respondent-Appellant, v APPLIED CARD SYSTEMS, INC., et al., Appellants-Respondents.

Submitted March 17, 2008; decided March 20, 2008

Reported below, 41 AD3d 4.

Motion by Attorney General of the State of Vermont et al. for leave to file a brief amici curiae on the appeal herein granted. Three copies of the brief must be served and an original and 24 copies filed within seven days.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v ANDREW PACKER, Respondent.

Submitted March 17, 2008; decided March 20, 2008

Reported below, 49 AD3d 184.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. WOODROW FLEMING, Appellant, v R. WOODS, as Superintendent of Upstate Correctional Facility, Respondent.

Submitted February 11, 2008; decided March 20, 2008

Reported below, 2007 NY Slip Op 87791(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

THEODORE PETTIES, Appellant, v NEW YORK CITY HOUSING AUTHORITY, Respondent.

Submitted February 11, 2008; decided March 20, 2008

Reported below, 36 AD3d 882.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of IGNACIO REYNOSO, Appellant, v ROBERT DENNISON, as Acting Chairman of the New York State Division of Parole, Respondent.

Submitted March 10, 2008; decided March 20, 2008

Appeal dismissed without costs, by the Court of Appeals, sua sponte, upon the ground that the October 29, 2007 letter appealed from is not a judgment or an order from which an appeal to the Court of Appeals may be taken (*see* CPLR 5512 [a]; 5601).

NORMAN D. ROSENBERG, Appellant, v EILEEN S. SACK, Also
Known as LEENY SACK, Respondent.

Submitted February 11, 2008; decided March 20, 2008

Reported below, 46 AD3d 1273.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY, as Sub-
rogee of SCOTT D. HINMAN, Respondent, v CROYLE ENTER-
PRISES, INC., Doing Business as DAMIAN'S AUTOMOTIVE, Ap-
pellant.

Submitted February 4, 2008; decided March 20, 2008

Reported below, 46 AD3d 1167.

Motion for leave to appeal dismissed upon the ground that Croyle Enterprises, Inc. must appear by attorney (*see* CPLR 321 [a]), and Damian Croyle, who is not an attorney, may not act as its authorized legal representative.

SUPERB GENERAL CONTRACTING CO., Appellant, v CITY OF NEW
YORK et al., Respondents, et al., Defendants.

Submitted November 19, 2007; decided March 20, 2008

Reported below, 39 AD3d 204.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

WADSWORTH AVENUE ASSOCIATES, Appellant, v KENNETH L. MAY-
NARD, Respondent.

Submitted January 7, 2008; decided March 20, 2008

Reported below, 45 AD3d 316.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

PAMELA WEADICK et al., Appellants, v CAROL ANNE HERLIHY, Respondent.

Submitted January 28, 2008; decided March 20, 2008

Reported below, 46 AD3d 403.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[886 NE2d 179, 856 NYS2d 557]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH WINDHAM, Appellant.

Argued February 14, 2008; decided March 25, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered February 13, 2007. The Appellate Division affirmed an order of the Supreme Court, Kings County (Louis J. Marrero, J.), which, after a hearing, had designated defendant a level three sex offender pursuant to Correction Law article 6-C.

People v Windham, 37 AD3d 571, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review

Defendant, who was adjudicated a level three sex offender, failed to preserve for appellate review his contention that he was not subject to the Sex Offender Registration Act (SORA) (Correction Law art 6-C) because he finished serving the sex-offense portion of a concurrent sentence in 1994, prior to SORA's effective date (Jan. 21, 1996). Defendant's claim did not fall within a narrow exception to the preservation rule for challenges to unauthorized or illegal sentences. A SORA risk-level determination is not part of a defendant's sentence but a collateral consequence of a conviction for a sex offense designed to protect the public. Thus, defendant was required to contest his SORA eligibility at the hearing court.

APPEARANCES OF COUNSEL

Legal Aid Society, New York City (*Karen M. Kalikow* and *Steven Banks* of counsel), for appellant.

Charles J. Hynes, District Attorney, Brooklyn (*Anthea H. Bruffee* and *Leonard Joblove* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, without costs.

On August 2, 1991, defendant Joseph Windham was sentenced in accordance with a plea agreement to concurrent terms of imprisonment of 4 to 12 years for first-degree robbery and 1 to 3 years for first-degree sexual abuse. He was first released on parole on June 25, 1996, but was subsequently reincarcerated in 1997 for a parole violation.

In 2005, defendant appeared before Supreme Court for a sex offender risk level reassessment hearing pursuant to *Doe v Pataki* (3 F Supp 2d 456 [SD NY 1998]), at which the People successfully sought to have him adjudicated a level three (high risk) sex offender under the Sex Offender Registration Act (SORA) (Correction Law art 6-C). In his appeal to the Appellate Division, defendant argued for the first time that he was not subject to SORA because, although he was released on parole after SORA's effective date (Jan. 21, 1996), he finished serving the sex-offense portion of his concurrent sentence no later than August 2, 1994. In affirming the hearing court, the Appellate Division rejected this claim on the ground that it was unpreserved and, in any event, without merit.

We now affirm on the basis that defendant did not preserve his claim for appellate review; we express no view as to the merits. Although defendant looks for support to cases where we have held that a challenge to an unauthorized or illegal sentence falls within a narrow exception to the preservation rule (*see People v Samms*, 95 NY2d 52 [2000]), a SORA risk-level determination is not part of a defendant's sentence (*see People v Stevens*, 91 NY2d 270, 277 [1998]). Rather, it is a collateral consequence of a conviction for a sex offense designed not to punish, but rather to protect the public (*see Doe v Pataki*, 120 F3d 1263 [2d Cir 1997], *cert denied* 522 US 1122 [1998]). In sum, defendant was required to contest his SORA eligibility at the hearing court.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed, without costs, in a memorandum.

In the Matter of GEORGE P. ALESSIO, JR., Appellant-Respondent,
v PAUL G. CAREY, Respondent-Appellant, et al., Respondents.

Submitted March 17, 2008; decided March 25, 2008

Reported below, 49 AD3d 1147.

Motion by appellant-respondent Alessio for leave to appeal denied. Motion by appellant-respondent Alessio for a stay dismissed as academic. Motion by respondent-appellant Carey for leave to appeal denied.

In the Matter of AMBER A. and Another, Infants. ERIE COUNTY
DEPARTMENT OF SOCIAL SERVICES, Respondent; STEVEN V,
II, Respondent, and KATHY A., Appellant. (Appeal No. 1.)

In the Matter of ANDREW V. and Another, Infants. ERIE COUNTY
DEPARTMENT OF SOCIAL SERVICES, Respondent; STEVEN V,
II, Respondent, and KATHY A., Appellant. (Appeal No. 2.)

Submitted February 19, 2008; decided March 25, 2008

Reported below, *Matter of Amber A.*, 46 AD3d 1470.

Reported below, *Matter of Andrew V.*, 46 AD3d 1471.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of ANONYMOUS, an Applicant for Admission to the
Bar, Appellant.

Submitted March 10, 2008; decided March 25, 2008

Reported below, 42 AD3d 656.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that it is untimely (*see* CPLR 5513 [a]).

MELISSA BALLAS, Appellant, v OCCUPATIONAL AND SPORTS MEDICINE OF BROOKHAVEN, P.C., et al., Respondents, et al., Defendant.

Submitted January 22, 2008; decided March 25, 2008

Reported below, 46 AD3d 498.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of BOARD OF EDUCATION OF THE NEW PALTZ CENTRAL SCHOOL DISTRICT, Appellant, v MICHELLE C. DONALDSON, as Commissioner of Human Rights, et al., Respondents.

Submitted February 4, 2008; decided March 25, 2008

Reported below, 41 AD3d 1138.

Motion by the New York State School Boards Association for leave to file a brief amicus curiae on the motion for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of PEDRO JASON WILLIAM M. and Others, Infants. PEDRO M., Appellant; EPISCOPAL SOCIAL SERVICES et al., Respondents.

Submitted February 11, 2008; decided March 25, 2008

Reported below, 45 AD3d 431.

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELIEZER CINTRON, Appellant.

Submitted February 11, 2008; decided March 25, 2008

Reported below, 46 AD3d 353.

Motion for leave to appeal denied on the ground that an appeal lies as of right. Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEPHEN KELEMEN, Appellant.

Submitted February 4, 2008; decided March 25, 2008

Reported below, 44 AD3d 687.

Motion for leave to appeal dismissed upon the ground that no civil appeal lies from the order of the Appellate Division entered in this criminal action (*see* NY Const, art VI, § 3 [b]; CPLR 5602; CPL 450.90). Motion for poor person relief dismissed as academic.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v INA V. KURZ, Appellant.

Submitted March 10, 2008; decided March 25, 2008

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order entered in this criminal action (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.70, 450.90).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ERNEST W. VANN, Appellant.

Submitted March 17, 2008; decided March 25, 2008

Reported below, 2008 NY Slip Op 61566(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no civil appeal lies from the order of the Appellate Division entered in this criminal proceeding (*see* NY Const, art VI, § 3 [b]; CPLR 5601; CPL 450.90).

THE PEOPLE OF THE STATE OF NEW YORK ex rel. RONALD J. HALL, Appellant, v DEBORAH L. KEYSOR, as Acting Superintendent of Altona Correctional Facility, Respondent.

Submitted February 19, 2008; decided March 25, 2008

Reported below, 2008 NY Slip Op 61574(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

SILBERSTEIN, AWAD & MIKLOS, P.C., Respondent, v SPENCER, MASTON & MCCARTHY, LLP, Appellant.

Submitted February 4, 2008; decided March 25, 2008

Reported below, 43 AD3d 902.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of SVETLANA SOROKINA, Appellant, v DAVID A. HANSELL, as Acting Commissioner of New York State Office of Temporary and Disability Assistance, et al., Respondents.

Submitted March 17, 2008; decided March 25, 2008

Reported below, 45 AD3d 1388.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of SUFFOLK REGIONAL OFF-TRACK BETTING CORPORATION, Respondent-Appellant, v NEW YORK STATE RACING AND WAGERING BOARD et al., Appellants-Respondents. (And Four Other Related Proceedings.)

Submitted February 19, 2008; decided March 25, 2008

Reported below, 47 AD3d 133.

Motion by the Standardbred Owners Association for leave to file a brief amicus curiae on the motions for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of SUFFOLK REGIONAL OFF-TRACK BETTING CORPORATION, Respondent-Appellant, v NEW YORK STATE RACING AND WAGERING BOARD et al., Appellants-Respondents. (And Four Other Related Proceedings.)

Submitted February 19, 2008; decided March 25, 2008

Reported below, 47 AD3d 133.

Motion by the Monticello Harness Horsemen's Association for leave to file a brief amicus curiae on the motions for leave to appeal herein granted and the brief is accepted as filed.

In the Matter of SUFFOLK REGIONAL OFF-TRACK BETTING CORPORATION, Respondent-Appellant, v NEW YORK STATE RACING AND WAGERING BOARD et al., Appellants-Respondents. (And Four Other Related Proceedings.)

Submitted February 11, 2008; decided March 25, 2008

Reported below, 47 AD3d 133.

Motion by the Saratoga Harness Horsepersons' Association for leave to file a memorandum of law amicus curiae on the motions for leave to appeal herein granted and the memorandum of law is accepted as filed.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(March 1, 2008 through March 31, 2008)

Caroselli, Matter of, v Lott	2d Dept: 2007 NY Slip Op 86484(U), 79563(U)	3/27/08
People ex rel. Morris v Conway	4th Dept: 2007 NY Slip Op 87350(U)	3/27/08

APPEALS WITHDRAWN AND DISCONTINUED

(March 1, 2008 through March 31, 2008)

OneBeacon Am. Ins. Co. v NL Indus., Inc.	1st Dept: 43 AD3d 716	3/18/08
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APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(March 1, 2008 through March 31, 2008)

People v Adamson	3d Dept: 47 AD3d 318 (Schenectady)	denied 3/14/08 (Pigott, J.)
People v Alas	1st Dept: 44 AD3d 534 (NY)	denied 3/19/08 (Jones, J.)
People v Alston	1st Dept: 45 AD3d 398 (Bronx)	denied 3/20/08 (Read, J.)
People v Alvarez	1st Dept: 46 AD3d 476 (NY)	denied 3/20/08 (Grafteo, J.)
People v Antonsanti	1st Dept: 46 AD3d 290 (NY)	denied 3/31/08 (Ciparick, J.)
People v Archbold	App Div, 1st Dept: 2007 NY Slip Op 83232(U) (NY)	denied reconsideration 3/26/08 (Jones, J.)

People v Archer	2d Dept: 47 AD3d 639 (Queens)	denied 3/25/08 (Pigott, J.)
People v Ayers	4th Dept: 45 AD3d 1290 (Ontario)	denied 3/11/08 (Kaye, Ch.J.)
People v Ayler	2d Dept: 46 AD3d 565 (Kings)	denied 3/20/08 (Kaye, Ch.J.)
People v Baez	1st Dept: 47 AD3d 516 (NY)	denied 3/20/08 (Read, J.)
People v Bam Bam	3d Dept: 47 AD3d 961 (Sullivan)	denied 3/20/08 (Kaye, Ch.J.)
People v Banks (David)	4th Dept: 46 AD3d 1373 (Monroe)	denied 3/20/08 (Kaye, Ch.J.)
People v Banks (William)	4th Dept: 48 AD3d 1097 (Monroe)	denied 3/26/08 (Smith, J.) (Appeal No. 1)
People v Banks (William)	4th Dept: 48 AD3d 1097 (Monroe)	denied 3/26/08 (Smith, J.) (Appeal No. 2)
People v Barnes	1st Dept: 46 AD3d 375 (NY)	denied 3/11/08 (Kaye, Ch.J.)
People v Bashkatov	App Term, 2d Dept: 18 Misc 3d 127(A) (Richmond)	denied 3/20/08 (Pigott, J.)
People v Bedieko	App Term, 1st Dept: 18 Misc 3d 127(A) (NY)	denied 3/7/08 (Pigott, J.)
People v Bell	1st Dept: 46 AD3d 385 (Bronx)	denied 3/27/08 (Pigott, J.)
People v Bennett	2d Dept: 46 AD3d 832 (Kings)	denied 3/21/08 (Read, J.)
People v Berumen	3d Dept: 46 AD3d 1019 (Cortland)	denied 3/20/08 (Kaye, Ch.J.)
People v Bhutta	App Term, 2d Dept: 18 Misc 3d 128(A) (Queens)	denied 3/25/08 (Smith, J.)
People v Birmingham	4th Dept: 46 AD3d 1469 (Steuben)	denied 3/21/08 (Read, J.)
People v Blair	1st Dept: 45 AD3d 486 (Bronx)	denied 3/6/08 (Kaye, Ch.J.)
People v Bliss	1st Dept: 46 AD3d 291 (NY)	denied 3/7/08 (Pigott, J.)
People v Blount	2d Dept: 47 AD3d 825 (Kings)	denied 3/20/08 (Smith, J.)
People v Boatwain	App Div, 2d Dept: 2007 NY Slip Op 86595(U) (Westchester)	dismissed 3/26/08 (Grafteo, J.)
People v Bowman	1st Dept: 48 AD3d 178 (NY)	denied 3/7/08 (Pigott, J.)
People v Boyce	2d Dept: 47 AD3d 826 (Kings)	denied 3/27/08 (Grafteo, J.)
People v Brown (Khareem)	3d Dept: 46 AD3d 949 (Broome)	denied 3/6/08 (Kaye, Ch.J.)
People v Brown (Sharon)	1st Dept: 46 AD3d 305 (NY)	denied 3/6/08 (Kaye, Ch.J.)

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People v Bruno	3d Dept: 47 AD3d 1064 (Albany)	denied 3/26/08 (Smith, J.)
People v Bryan	3d Dept: 46 AD3d 1219 (Chemung)	denied 3/28/08 (Read, J.)
People v Bunce	3d Dept: 45 AD3d 982 (Columbia)	denied 3/20/08 (Kaye, Ch.J.)
People v Carroll	County Ct, 10/31/07 (Oneida)	denied reconsideration 3/26/08 (Grafteo, J.)
People v Castillo	App Div, 1st Dept: 2008 NY Slip Op 61966(U) (NY)	dismissed 3/20/08 (Ciparick, J.)
People v Chatmon	2d Dept: 46 AD3d 833 (Westchester)	denied 3/26/08 (Grafteo, J.)
People v Colon (Edward)	App Term, 1st Dept: 17 Misc 3d 128(A) (Bronx)	denied 3/7/08 (Kaye, Ch.J.)
People v Colon (Moises)	1st Dept: 45 AD3d 457 (NY)	denied 3/12/08 (Kaye, Ch.J.)
People v Colon (Rafael)	1st Dept: 45 AD3d 356 (Bronx)	denied 3/31/08 (Ciparick, J.)
People v Cook	4th Dept: 46 AD3d 1427 (Erie)	denied 3/21/08 (Read, J.)
People v Cruz (Derick)	1st Dept: 46 AD3d 306 (NY)	denied 3/7/08 (Pigott, J.)
People v Cruz (Luis)	1st Dept: 46 AD3d 313 (NY)	denied 3/7/08 (Pigott, J.)
People v Cuadrado	1st Dept: 47 AD3d 437 (NY)	denied 3/27/08 (Pigott, J.)
People v Cunningham	4th Dept: 43 AD3d 1453 (Erie)	denied 3/14/08 (Jones, J.)
People v Cushner	3d Dept: 46 AD3d 1121 (Broome)	denied 3/14/08 (Pigott, J.)
People v Dais	1st Dept: 47 AD3d 421 (NY)	denied 3/18/08 (Read, J.)
People v Dallas	1st Dept: 46 AD3d 489 (NY)	denied 3/18/08 (Read, J.)
People v Davis (Anthony)	1st Dept: 45 AD3d 479 (NY)	denied 3/18/08 (Read, J.)
People v Davis (Maurice)	App Div, 1st Dept: 2007 NY Slip Op 87516(U) (NY)	denied 3/20/08 (Kaye, Ch.J.)
People v Dawkins	1st Dept: 43 AD3d 705 (Bronx)	denied 3/26/08 (Pigott, J.)
People v Debo	4th Dept: 45 AD3d 1349 (Oswego)	denied 3/7/08 (Kaye, Ch.J.)
People v DeGrijze	2d Dept: 43 AD3d 1076 (Queens)	denied reconsideration 3/14/08 (Pigott, J.)
People v DelaCruz	1st Dept: 46 AD3d 361 (NY)	denied 3/18/08 (Read, J.)

People v Deleon	2d Dept: 45 AD3d 860 (Westchester)	denied 3/28/08 (Read, J.)
People v DeLeon	2d Dept: 46 AD3d 569 (Kings)	denied 3/7/08 (Jones, J.)
People v Desulma	App Div, 2d Dept: 2007 NY Slip Op 83771(U) (Kings)	dismissed 3/20/08 (Grafteo, J.)
People v DeVeaux	App Div, 1st Dept: 2007 NY Slip Op 87524(U) (Bronx)	denied 3/28/08 (Kaye, Ch.J.)
People v Dickerson	2d Dept: 45 AD3d 778 (Queens)	denied 3/11/08 (Kaye, Ch.J.)
People v DiFiore	2d Dept: 46 AD3d 835 (Queens)	denied 3/21/08 (Read, J.)
People v Diggins	1st Dept: 45 AD3d 266 (NY)	granted 3/27/08 (Pigott, J.)
People v Dion	3d Dept: 2008 NY Slip Op 63108(U) (Madison)	dismissed 3/31/08 (Read, J.)
People v Distefano	1st Dept: 47 AD3d 521 (NY)	denied 3/25/08 (Smith, J.)
People v Douglas	2d Dept: 46 AD3d 698 (Queens)	denied 3/6/08 (Kaye, Ch.J.)
People v Drew (Eric)	1st Dept: 45 AD3d 441 (NY)	denied 3/26/08 (Kaye, Ch.J.)
People v Drew (Erik)	1st Dept: 45 AD3d 441 (NY)	denied 3/26/08 (Kaye, Ch.J.)
People v Dwon	4th Dept: 45 AD3d 1457 (Erie)	denied 3/20/08 (Kaye, Ch.J.)
People v Edwards	2d Dept: 43 AD3d 1175 (Westchester)	denied 3/27/08 (Grafteo, J.)
People v Elmendorf	2d Dept: 45 AD3d 858 (Dutchess)	denied 3/6/08 (Kaye, Ch.J.)
People v Ely	1st Dept: 45 AD3d 466 (NY)	denied 3/26/08 (Kaye, Ch.J.)
People v Ennis (Aaron)	1st Dept: 41 AD3d 271 (NY)	denied 3/6/08 (Kaye, Ch.J.)
People v Ennis (Sheldon)	1st Dept: 41 AD3d 271 (NY)	granted 3/6/08 (Kaye, Ch.J.)
People v Ephram	1st Dept: 47 AD3d 497 (Bronx)	denied 3/26/08 (Kaye, Ch.J.)
People v Etheridge	2d Dept: 46 AD3d 835 (Orange)	denied 3/21/08 (Read, J.)
People v Eure	1st Dept: 46 AD3d 386 (NY)	denied 3/27/08 (Grafteo, J.)
People v Faulks	4th Dept: 46 AD3d 1447 (Niagara)	denied 3/6/08 (Kaye, Ch.J.)
People v Figueroa	1st Dept: 47 AD3d 524 (Bronx)	denied 3/20/08 (Smith, J.)
People v Florestal	1st Dept: 47 AD3d 457 (NY)	denied 3/18/08 (Read, J.)

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People v Floyd	4th Dept: 45 AD3d 1457 (Erie)	denied 3/20/08 (Kaye, Ch.J.)
People v Forward	3d Dept: 46 AD3d 1222 (Madison)	denied 3/21/08 (Read, J.)
People v France	1st Dept: 47 AD3d 486 (NY)	denied 3/20/08 (Kaye, Ch.J.)
People v Freece	4th Dept: 46 AD3d 1428 (Monroe)	denied 3/21/08 (Read, J.)
People v Freeman	4th Dept: 38 AD3d 1253 (Monroe)	denied reconsideration 3/26/08 (Kaye, Ch.J.)
People v Garcia (Carlos)	1st Dept: 45 AD3d 489 (Bronx)	denied 3/19/08 (Jones, J.)
People v Garcia (Danny)	2d Dept: 45 AD3d 860 (Westchester)	denied 3/28/08 (Read, J.)
People v Garner	1st Dept: 46 AD3d 330 (NY)	denied 3/26/08 (Grafteo, J.)
People v Gause	4th Dept: 46 AD3d 1332 (Monroe)	dismissed 3/14/08 (Kaye, Ch.J.)
People v Glover (Ronald)	App Term, 2d Dept: 18 Misc 3d 128(A) (Kings)	denied 3/14/08 (Pigott, J.)
People v Glover (Shawn)	App Div, 4th Dept, 12/18/07 (Monroe)	dismissed 3/21/08 (Read, J.)
People v Gonzalez	2d Dept: 45 AD3d 696 (Orange)	denied 3/31/08 (Ciparick, J.)
People v Goodwine	2d Dept: 46 AD3d 702 (Westchester)	denied 3/31/08 (Ciparick, J.)
People v Gordon (Carlton)	4th Dept: 45 AD3d 1357 (Monroe)	denied 3/12/08 (Kaye, Ch.J.)
People v Gordon (Jason)	2d Dept: 47 AD3d 833 (Queens)	denied 3/27/08 (Pigott, J.)
People v Greene	1st Dept: 47 AD3d 406 (NY)	denied 3/11/08 (Kaye, Ch.J.)
People v Griswold	4th Dept: 46 AD3d 1378 (Onondaga)	denied 3/26/08 (Kaye, Ch.J.)
People v Grubbs	4th Dept: 48 AD3d 1186 (Onondaga)	denied 3/26/08 (Smith, J.)
People v Guereo	2d Dept: 45 AD3d 860 (Westchester)	denied 3/28/08 (Read, J.)
People v Handley	4th Dept: 46 AD3d 1378 (Erie)	denied 3/28/08 (Read, J.)
People v Haynes	4th Dept: 45 AD3d 1423 (Orleans)	denied 3/17/08 (Read, J.)
People v Hernandez	4th Dept: 46 AD3d 1388 (Erie)	denied 3/21/08 (Read, J.)
People v Herndon	2d Dept: 47 AD3d 837 (Queens)	denied 3/26/08 (Smith, J.)
People v Hicks	1st Dept: 46 AD3d 466 (Bronx)	denied 3/28/08 (Read, J.)

People v High	4th Dept: 46 AD3d 1435 (Niagara)	denied 3/26/08 (Read, J.)
People v Hines	2d Dept: 46 AD3d 912 (Queens)	denied 3/20/08 (Smith, J.)
People v Hodges	1st Dept: 46 AD3d 479 (Bronx)	denied 3/6/08 (Smith, J.)
People v Hoffman	2d Dept: 47 AD3d 840 (Queens)	denied 3/27/08 (Pigott, J.)
People v Hopkins	4th Dept: 46 AD3d 1449 (Monroe)	denied 3/28/08 (Read, J.)
People v Howard	4th Dept: 46 AD3d 1387 (Monroe)	denied 3/28/08 (Kaye, Ch.J.)
People v Hunt (Clifton)	4th Dept: 46 AD3d 1478 (Wayne)	denied 3/20/08 (Smith, J.)
People v Hunt (Pete)	4th Dept: 46 AD3d 1478 (Wayne)	denied 3/20/08 (Smith, J.)
People v Hunter (Bryan)	4th Dept: 46 AD3d 1374 (Onondaga)	denied 3/6/08 (Kaye, Ch.J.)
People v Hunter (Davon)	4th Dept: 46 AD3d 1417 (Onondaga)	denied 3/6/08 (Smith, J.)
People v Jackson (Trevers)	1st Dept: 45 AD3d 433 (NY)	denied 3/20/08 (Read, J.)
People v Jackson (Tyrone)	App Div, 1st Dept: 2007 NY Slip Op 87486(U) (NY)	denied 3/25/08 (Pigott, J.)
People v Jackson (Willie)	4th Dept: 41 AD3d 1268 (Erie)	denied 3/14/08 (Jones, J.)
People v Jama	1st Dept: 46 AD3d 470 (NY)	denied 3/19/08 (Jones, J.)
People v Jenkins	1st Dept: 45 AD3d 360 (Bronx)	denied 3/21/08 (Read, J.)
People v Johnson (Todd)	1st Dept: 46 AD3d 415 (NY)	denied 3/27/08 (Grafteo, J.)
People v Johnson (William)	1st Dept: 46 AD3d 479 (Bronx)	denied 3/6/08 (Smith, J.)
People v Johnston	4th Dept: 46 AD3d 1373 (Ontario)	denied 3/21/08 (Read, J.)
People v Jones (Donald)	2d Dept: 46 AD3d 840 (Kings)	denied 3/6/08 (Kaye, Ch.J.)
People v Jones (Jamar)	4th Dept: 43 AD3d 1296 (Erie)	denied reconsideration 3/20/08 (Grafteo, J.)
People v Jones (Robert)	3d Dept: 47 AD3d 961 (Sullivan)	denied 3/20/08 (Kaye, Ch.J.)
People v Jordan	2d Dept: 43 AD3d 1076 (Queens)	denied 3/28/08 (Read, J.)
People v Joseph A.J.	4th Dept: 48 AD3d 1090 (Ontario)	denied 3/27/08 (Smith, J.)
People v Keitt	1st Dept: 47 AD3d 413 (NY)	denied 3/20/08 (Read, J.)

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People v Kelley	4th Dept: 46 AD3d 1329 (Erie)	denied 3/6/08 (Kaye, Ch.J.)
People v King	2d Dept: 46 AD3d 704 (Rockland)	denied 3/7/08 (Pigott, J.)
People v Kirchgessner	County Ct, 11/2/07 (Monroe)	denied 3/19/08 (Jones, J.)
People v Knight	1st Dept: 46 AD3d 391 (NY)	denied 3/7/08 (Pigott, J.)
People v Lampon	2d Dept: 38 AD3d 682 (Kings)	denied reconsideration 3/20/08 (Kaye, Ch.J.)
People v Leary (Kenneth)	App Div, 3d Dept: 2007 NY Slip Op 87150(U) (Washington)	denied 3/14/08 (Pigott, J.)
People v Leary (Nathaniel)	1st Dept: 45 AD3d 449 (NY)	denied 3/20/08 (Read, J.)
People v Leccese	County Ct, 8/23/07 (Ontario)	denied 3/19/08 (Jones, J.)
People v Leddy	2d Dept: 47 AD3d 842 (Suffolk)	denied 3/27/08 (Pigott, J.)
People v Legrett	4th Dept: 48 AD3d 1111 (Ontario)	denied 3/26/08 (Grafteo, J.)
People v Lopez	1st Dept: 47 AD3d 431 (NY)	denied 3/27/08 (Pigott, J.)
People v Lowmack	4th Dept: 43 AD3d 1453 (Erie)	denied reconsideration 3/16/08 (Smith, J.)
People v Machado	1st Dept: 46 AD3d 370 (NY)	denied 3/20/08 (Read, J.)
People v Machuca	3d Dept: 45 AD3d 1043 (Clinton)	denied 3/6/08 (Kaye, Ch.J.)
People v Mack	4th Dept: 46 AD3d 1410 (Wayne)	denied 3/6/08 (Kaye, Ch.J.)
People v Maisonet	App Div, 1st Dept: 2007 NY Slip Op 69168(U) (Bronx)	denied 3/19/08 (Jones, J.)
People v McCoy (Carl)	4th Dept: 46 AD3d 1348 (Monroe)	denied 3/20/08 (Kaye, Ch.J.)
People v McCoy (Kemp)	1st Dept: 45 AD3d 395 (Bronx)	denied 3/31/08 (Ciparick, J.)
People v McCullough	4th Dept: 48 AD3d 1085 (Monroe)	denied 3/26/08 (Grafteo, J.)
People v McGrady	4th Dept: 45 AD3d 1395 (Monroe)	denied 3/6/08 (Kaye, Ch.J.)
People v McGuire	2d Dept: 44 AD3d 968 (Kings)	denied 3/21/08 (Read, J.)
People v McKinney	2d Dept: 46 AD3d 705 (Dutchess)	denied 3/20/08 (Smith, J.)
People v McNair	2d Dept: 45 AD3d 872 (Orange)	denied 3/31/08 (Ciparick, J.)
People v McNeil	2d Dept: 47 AD3d 647 (Kings)	denied 3/11/08 (Kaye, Ch.J.)

People v Metellus	2d Dept: 46 AD3d 578 (Queens)	denied 3/21/08 (Read, J.)
People v Mills	App Div, 4th Dept: 2008 NY Slip Op 61316(U) (Genesee)	dismissed 3/20/08 (Smith, J.)
People v Minucci	1st Dept: 47 AD3d 600 (NY)	denied 3/27/08 (Grafteo, J.)
People v Morales	App Div, 2d Dept: 2008 NY Slip Op 62834(U) (Rockland)	dismissed 3/26/08 (Jones, J.)
People v Morelli	3d Dept: 46 AD3d 1215 (Chenango)	denied 3/7/08 (Pigott, J.)
People v Morgan	App Div, 2d Dept: 2007 NY Slip Op 86605(U) (Rockland)	dismissed 3/18/08 (Read, J.)
People v Mosher	3d Dept: 45 AD3d 970 (Chenango)	denied 3/14/08 (Jones, J.)
People v Muhammad	2d Dept: 41 AD3d 738 (Kings)	denied 3/7/08 (Kaye, Ch.J.)
People v Mujahid	3d Dept: 45 AD3d 1184 (Albany)	denied 3/19/08 (Pigott, J.)
People v Munroe	App Term, 2d Dept: 18 Misc 3d 9 (Westchester)	denied 3/20/08 (Grafteo, J.)
People v Muwakkil	1st Dept: 47 AD3d 455 (NY)	denied 3/20/08 (Kaye, Ch.J.)
People v Myers	3d Dept: 46 AD3d 1028 (Rensselaer)	denied 3/6/08 (Smith, J.)
People v Nager	App Term, 2d Dept: 2007 NY Slip Op 87546(U) (Nassau)	denied reconsideration 3/6/08 (Jones, J.)
People v Nelson	3d Dept: 46 AD3d 932 (Albany)	denied 3/7/08 (Pigott, J.)
People v Olibencia	2d Dept: 45 AD3d 607 (Rockland)	denied 3/28/08 (Read, J.)
People v Ortiz	1st Dept: 45 AD3d 368 (Bronx)	denied 3/20/08 (Read, J.)
People v Patchen	3d Dept: 46 AD3d 1112 (Chemung)	denied 3/21/08 (Read, J.)
People v Payne (Joseph)	1st Dept: 45 AD3d 501 (Bronx)	denied 3/14/08 (Pigott, J.)
People v Payne (Marc)	2d Dept: 41 AD3d 512 (Kings)	denied 3/14/08 (Jones, J.)
People v Perez (Alfonzo)	4th Dept: 47 AD3d 1192 (Herkimer)	denied 3/20/08 (Grafteo, J.)
People v Perez (Manuel)	2d Dept: 46 AD3d 708 (Queens)	denied 3/7/08 (Pigott, J.)
People v Perez (Ranfis)	App Div, 1st Dept: 2008 NY Slip Op 60107(U) (NY)	denied 3/26/08 (Kaye, Ch.J.)
People v Pesante	4th Dept: 46 AD3d 1405 (Ontario)	denied 3/6/08 (Kaye, Ch.J.)

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People v Phillips (Daryl)	2d Dept: 45 AD3d 702 (Kings)	denied 3/12/08 (Kaye, Ch.J.)
People v Phillips (Jamel)	3d Dept: 46 AD3d 1021 (Chemung)	denied 3/31/08 (Ciparick, J.)
People v Pinkston	1st Dept: 39 AD3d 233 (NY)	denied 3/20/08 (Grafteo, J.)
People v Pitts	2d Dept: 47 AD3d 845 (Kings)	denied 3/27/08 (Smith, J.)
People v Pizetzky	2d Dept: 46 AD3d 709 (Suffolk)	denied 3/6/08 (Kaye, Ch.J.)
People v Poole	1st Dept: 45 AD3d 501 (NY)	denied 3/18/08 (Read, J.)
People v Prashad	2d Dept: 46 AD3d 844 (Queens)	denied 3/28/08 (Read, J.)
People v Pruitt	App Div, 2d Dept: 2008 NY Slip Op 62835(U) (Queens)	dismissed 3/31/08 (Ciparick, J.)
People v Quezada	App Div, 1st Dept: 2007 NY Slip Op 87503(U) (NY)	denied 3/20/08 (Smith, J.)
People v Quiles	1st Dept: 48 AD3d 292 (Bronx)	denied 3/26/08 (Grafteo, J.)
People v Quinones (George)	2d Dept: 45 AD3d 874 (Kings)	granted 3/31/08 (Ciparick, J.)
People v Quinones (Rodney)	1st Dept: 48 AD3d 227 (NY)	denied 3/20/08 (Grafteo, J.)
People v Ramirez (Miguel)	2d Dept: 46 AD3d 844 (Rockland)	denied 3/14/08 (Pigott, J.)
People v Ramirez (Raymond)	1st Dept: 46 AD3d 290 (Bronx)	denied 3/19/08 (Jones, J.)
People v Ransdell	1st Dept: 45 AD3d 467 (NY)	denied 3/18/08 (Read, J.)
People v Reddick	4th Dept: 43 AD3d 1334 (Onondaga)	denied 3/14/08 (Jones, J.)
People v Reinhart	2d Dept: 46 AD3d 924 (Suffolk)	denied 3/7/08 (Pigott, J.)
People v Richardson	App Term, 1st Dept: 18 Misc 3d 89 (NY)	denied 3/7/08 (Pigott, J.)
People v Rincon	1st Dept: 45 AD3d 467 (NY)	denied 3/14/08 (Jones, J.)
People v Rivera (Freddy)	1st Dept: 46 AD3d 349 (NY)	denied 3/20/08 (Grafteo, J.)
People v Rivera (Luis)	1st Dept: 47 AD3d 515 (NY)	denied 3/26/08 (Grafteo, J.)
People v Robinson (Gregory)	1st Dept: 45 AD3d 442 (NY)	dismissed 3/20/08 (Grafteo, J.)
People v Robinson (Ronald)	App Div, 4th Dept, 12/7/07 (Erie)	dismissed 3/20/08 (Grafteo, J.)
People v Rodriguez (David)	1st Dept: 46 AD3d 356 (Bronx)	denied 3/6/08 (Kaye, Ch.J.)

People v Rodriguez (Frederick)	2d Dept: 48 AD3d 711 (Kings)	denied 3/26/08 (Grafteo, J.)
People v Rodriguez (Gene)	1st Dept: 47 AD3d 417 (NY)	denied 3/6/08 (Smith, J.)
People v Rodriguez (George)	2d Dept: 45 AD3d 786 (Kings)	denied 3/7/08 (Kaye, Ch.J.)
People v Rodriguez (Juan)	4th Dept: 46 AD3d 1400 (Monroe)	denied 3/26/08 (Grafteo, J.)
People v Rodriguez (Nelson)	App Div, 1st Dept: 2007 NY Slip Op 79734(U) (Bronx)	denied 3/11/08 (Kaye, Ch.J.)
People v Rosa	3d Dept: 47 AD3d 1009 (Schenectady)	denied 3/21/08 (Read, J.)
People v Rosado (Steve)	App Div, 1st Dept: 2008 NY Slip Op 60514(U) (NY)	dismissed 3/10/08 (Kaye, Ch.J.)
People v Rosado (Steve)	App Div, 1st Dept: 2008 NY Slip Op 60514(U) (NY)	denied reconsideration 3/31/08 (Kaye, Ch.J.)
People v Rowe	App Div, 2d Dept: 2007 NY Slip Op 87735(U) (Westchester)	dismissed 3/6/08 (Jones, J.)
People v Roy	App Div, 3d Dept: 2008 NY Slip Op 61979(U) (Broome)	dismissed 3/26/08 (Jones, J.)
People v Rutledge	1st Dept: 46 AD3d 474 (NY)	denied 3/7/08 (Pigott, J.)
People v Salaam	3d Dept: 46 AD3d 1130 (Schenectady)	denied 3/11/08 (Smith, J.)
People v Sands	1st Dept: 45 AD3d 414 (NY)	denied 3/18/08 (Read, J.)
People v Santos	1st Dept: 47 AD3d 448 (Bronx)	denied 3/25/08 (Pigott, J.)
People v Saulters	4th Dept: 46 AD3d 1476 (Erie)	denied 3/6/08 (Smith, J.)
People v Scott	2d Dept: 46 AD3d 924 (Richmond)	denied 3/27/08 (Grafteo, J.)
People v Seaton	2d Dept: 45 AD3d 875 (Kings)	denied 3/7/08 (Pigott, J.)
People v Segarra	1st Dept: 46 AD3d 363 (NY)	denied 3/6/08 (Smith, J.)
People v Session	4th Dept: 48 AD3d 1067 (Monroe)	denied 3/27/08 (Grafteo, J.)
People v Shemack	2d Dept: 46 AD3d 582 (Nassau)	denied 3/21/08 (Read, J.)
People v Shipman	4th Dept: 46 AD3d 1434 (Niagara)	denied 3/6/08 (Kaye, Ch.J.)
People v Smith (Flabian)	1st Dept: 46 AD3d 488 (NY)	denied 3/18/08 (Read, J.)
People v Smith (Kevin)	4th Dept: 34 AD3d 1363 (Chautauqua)	denied reconsideration 3/6/08 (Kaye, Ch.J.)

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People v Smith (Rameen)	4th Dept: 46 AD3d 1458 (Wyoming)	denied 3/11/08 (Kaye, Ch.J.)
People v Smith (Terry)	App Div, 2d Dept: 2008 NY Slip Op 60596(U) (Suffolk)	dismissed 3/7/08 (Ciparick, J.)
People v Solano	3d Dept: 46 AD3d 1223 (Schenectady)	denied 3/27/08 (Smith, J.)
People v Solis	2d Dept: 43 AD3d 1190 (Queens)	denied reconsideration 3/26/08 (Pigott, J.)
People v Sosa	1st Dept: 46 AD3d 469 (NY)	denied 3/26/08 (Grafteo, J.)
People v Soto (Jason)	1st Dept: 46 AD3d 395 (NY)	denied 3/18/08 (Read, J.)
People v Soto (Peter)	1st Dept: 46 AD3d 362 (Bronx)	denied 3/28/08 (Read, J.)
People v Staples	4th Dept: 46 AD3d 1416 (Monroe)	denied 3/20/08 (Kaye, Ch.J.)
People v Starks	4th Dept: 46 AD3d 1426 (Erie)	denied 3/6/08 (Smith, J.)
People v Stone	1st Dept: 45 AD3d 406 (NY)	denied 3/19/08 (Jones, J.)
People v Sykes	1st Dept: 47 AD3d 501 (NY)	denied 3/20/08 (Smith, J.)
People v Thacker	1st Dept: 47 AD3d 423 (NY)	denied 3/20/08 (Grafteo, J.)
People v Todd	App Div, 2d Dept: 2008 NY Slip Op 60799(U) (Queens)	dismissed 3/25/08 (Kaye, Ch.J.)
People v Tomlin	2d Dept: 41 AD3d 620 (Kings)	denied 3/7/08 (Pigott, J.)
People v Topolski	4th Dept: 45 AD3d 1423 (Onondaga)	denied 3/19/08 (Jones, J.)
People v Torres (Abelando)	2d Dept: 47 AD3d 851 (Kings)	denied 3/27/08 (Smith, J.)
People v Torres (Luis)	2d Dept: 46 AD3d 925 (Kings)	denied 3/7/08 (Pigott, J.)
People v Torres (Rafael)	App Div, 2d Dept: 2008 NY Slip Op 61411(U) (Kings)	dismissed 3/27/08 (Smith, J.)
People v Tosca	1st Dept: 46 AD3d 372 (Bronx)	denied 3/7/08 (Pigott, J.)
People v Turner	2d Dept: 46 AD3d 847 (Queens)	denied 3/19/08 (Jones, J.)
People v Vasquez	1st Dept: 48 AD3d 230 (NY)	denied 3/26/08 (Grafteo, J.)
People v Vibbert	4th Dept: 48 AD3d 1259 (Cayuga)	denied 3/27/08 (Grafteo, J.)
People v Vought	4th Dept: 45 AD3d 1247 (Monroe)	denied 3/21/08 (Read, J.)

People v Waites	App Term, 2d Dept: 18 Misc 3d 135(A) (Kings)	denied 3/26/08 (Kaye, Ch.J.)
People v Walker (Bernard)	1st Dept: 46 AD3d 327 (NY)	denied 3/28/08 (Read, J.)
People v Walker (Charles)	2d Dept: 45 AD3d 787 (Queens)	denied 3/6/08 (Kaye, Ch.J.)
People v Warren	4th Dept: 48 AD3d 1090 (Monroe)	denied 3/26/08 (Grafteo, J.)
People v Watson	4th Dept: 45 AD3d 1342 (Erie)	denied 3/12/08 (Kaye, Ch.J.)
People v Wearing	1st Dept: 47 AD3d 405 (NY)	denied 3/14/08 (Pigott, J.)
People v Westervelt	3d Dept: 47 AD3d 969 (Albany)	denied 3/25/08 (Smith, J.)
People v White	3d Dept: 47 AD3d 1062 (Albany)	denied 3/26/08 (Kaye, Ch.J.)
People v Williams (Anthony)	3d Dept: 48 AD3d 858 (Albany)	dismissed 3/31/08 (Kaye, Ch.J.)
People v Williams (Cory)	4th Dept: 45 AD3d 1466 (Onondaga)	denied 3/7/08 (Kaye, Ch.J.)
People v Williams (Pharoah)	1st Dept: 47 AD3d 416 (NY)	denied 3/7/08 (Pigott, J.)
People v Williams (Robert)	3d Dept: 46 AD3d 1115 (Essex)	denied 3/25/08 (Smith, J.)
People v Williams (Robert L.)	3d Dept: 45 AD3d 905 (Broome)	denied 3/6/08 (Kaye, Ch.J.)
People v Wilson	1st Dept: 46 AD3d 254 (NY)	denied 3/20/08 (Grafteo, J.)
People v Winchell	3d Dept: 46 AD3d 1096 (Madison)	denied 3/20/08 (Grafteo, J.)
People v Won	4th Dept: 45 AD3d 1457 (Erie)	denied 3/20/08 (Kaye, Ch.J.)
People v Woods	4th Dept: 48 AD3d 1276 (Niagara)	denied 3/27/08 (Grafteo, J.)
People v Word	1st Dept: 43 AD3d 773 (NY)	denied reconsideration 3/25/08 (Pigott, J.)
People v Yearwood	2d Dept: 46 AD3d 586 (Richmond)	denied 3/26/08 (Kaye, Ch.J.)

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL
Decisions of Appellate Division Justices*

(March 1, 2008 through March 31, 2008)

People v Estrella	4th Dept: 48 AD3d 1283 (Monroe)	granted 3/17/08 (Green, J.)
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* Includes only applications that were granted.

People v Hawkins

4th Dept: 48 AD3d 1279 (Monroe)

granted 3/31/08
(Scudder, J.)

[888 NE2d 1041, 859 NYS2d 99]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v CURTIS MITCHELL, Appellant.

Argued March 11, 2008; decided April 24, 2008

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 19, 2007. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Edward J. McLaughlin, J.), which had convicted defendant, upon a jury verdict, of burglary in the third degree and possession of burglar's tools.

People v Mitchell, 39 AD3d 357, affirmed.

HEADNOTE

Crimes — Appeal — Preservation of Issue for Review

In a criminal prosecution wherein there was evidence that defendant broke into the same building on two occasions during the same night, defendant failed to preserve for appellate review his objection to the judge's charge that the jury could convict him on the basis of the first, second or both entries where he was indicted on only one count by the grand jury. Although a valid and sufficient accusatory instrument is a nonwaivable jurisdictional prerequisite, the indictment was not jurisdictionally infirm, since the grand jury returned a valid and sufficient indictment charging defendant with burglary, committed on one specified date at one particularized location. While the prosecutor elicited evidence that two distinct burglaries were committed, each conformed with the date, location and elements specified in the indictment. Thus, defendant was required to object to the judge's instructions to avoid waiver.

APPEARANCES OF COUNSEL

Kramer Levin Naftalis & Frankel, LLP, New York City (*Darren LaVerne* of counsel), and *Legal Aid Society* (*Steven Banks* and *John Schoeffel* of counsel) for appellant.

Robert M. Morgenthau, District Attorney, New York City (*Eric Rosen* and *Vincent Rivelles* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

At around 1:30 A.M. on August 28, 2004, defendant and codefendant Charles May were observed by the superintendent of a neighboring building prying open the door of 18 East 16th Street in Manhattan and entering the building. At some point thereafter, the two were seen leaving the building. By the time the police arrived, defendant and May were gone. Roughly two hours later, the superintendent again observed defendant and May approach, pry open, enter and eventually exit through the door of the same building, but this time the police arrived in time to intercept them. After a brief chase, two police officers caught up with the two individuals, each carrying bags. Defendant's knapsack included a pair of gloves, a flashlight, screwdriver, multiuse tool, chisel, metal rod and plastic bags.

In the grand jury, the superintendent testified to his observations, including each of the two entrances into the building. At both the beginning and end of the grand jury presentation, the prosecutor asked the grand jurors to vote on one count of burglary as to each defendant, but did not specify whether that charge should apply to the first, second or both entries. The grand jury indicted defendant and codefendant each for one count of burglary and one count of possession of burglars' tools. As to the burglary charge the indictment reads: "The defendants, in the County of New York, on or about August 28, 2004, knowingly entered and remained unlawfully in the building of 18 E. 16th St. with intent to commit a crime therein."

At trial, the People submitted evidence regarding defendants' two entries into the building, and during summation the prosecutor repeatedly alleged that defendant broke into the building twice. The court then charged the jury that it could convict defendant on the basis of the first, the second or both entries, so long as the jury was unanimous as to at least one. Defendant did not object. The jury found defendant guilty of one count of burglary in the third degree and one count of possession of burglars' tools. Defendant now complains that his burglary conviction should be reversed because he was indicted only on one count of burglary, yet the trial jury was able to consider two alleged entries into the building, and it is unclear which of those resulted in conviction.

Although, as defendant argues, a valid and sufficient accusatory instrument is a nonwaivable jurisdictional prerequisite to a criminal prosecution, here there is no jurisdictional infirmity. The grand jury returned a valid and sufficient indictment charging him with the crime of burglary committed on one specified

date at one particularized location. While the prosecutor elicited evidence to support the conclusion that two distinct burglaries were committed, each conformed with the date, location and elements specified in the indictment.

Because there is no jurisdictional error, defendant was required to object to the judge's erroneous jury instructions in order to avoid waiver. His failure to do so renders this claim unpreserved. Defendant's remaining claims lack merit.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

DOUGLAS BRODMERKEL, Appellant, v JAMES McCULLAGH Co.,
INC., et al., Respondents.

Submitted February 19, 2008; decided April 24, 2008

Reported below, 46 AD3d 853.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

STEPHEN J. BROOKS et al., Plaintiffs, v JUDLAU CONTRACTING,
INC., Defendant and Third-Party Plaintiff-Appellant. THUN-
DERBIRD CONSTRUCTORS, INC., Third-Party Defendant-
Respondent.

Submitted March 24, 2008; decided April 24, 2008

Reported below, 39 AD3d 447.

Motion for a stay denied.

In the Matter of LARRY DAVIS, Appellant, v GLENN S. GOORD, as
Commissioner of Correctional Services, Respondent.

Submitted February 25, 2008; decided April 24, 2008

Reported below, 46 AD3d 955.

Motion for leave to appeal dismissed upon the ground that the proceeding and the motion have abated because of the death of appellant.

JAMES J. D'ESPOSITO, Appellant, v GUSRAE, KAPLAN & BRUNO
PLLC et al., Respondents, et al., Defendant.

Submitted February 25, 2008; decided April 24, 2008

Reported below, 44 AD3d 512.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of WOODROW FLEMMING, Appellant, v DENNIS
BOYLE, as Justice of the Supreme Court of the State of New
York, et al., Respondents.

Submitted March 3, 2008; decided April 24, 2008

Reported below, 45 AD3d 384.

Motion for reargument denied [*see* 10 NY3d 730 (2008)].

KATZ PARK AVENUE CORP., Respondent, v BIANCA JAGGER, Ap-
pellant, et al., Defendants.

Submitted March 24, 2008; decided April 24, 2008

Reported below, 46 AD3d 186.

Motion by respondent to strike pages 245 to 611 of the record on appeal and references thereto in appellant's brief granted. Motion by respondent for the imposition of sanctions denied. Motion by appellant to expand the record on appeal denied.

Chief Judge KAYE taking no part.

CITY OF KINGSTON, Respondent, v HARCO NATIONAL INSURANCE
COMPANY, Appellant, and JACKI BLANC et al., Respondents.

Submitted February 19, 2008; decided April 24, 2008

Reported below, 46 AD3d 1320.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of the DENNIS LABOMBARD, as Justice of the Ellenburg Town Court, Clinton County, Petitioner. STATE COMMISSION ON JUDICIAL CONDUCT, Respondent.

Submitted April 7, 2008; decided April 24, 2008

Motion to vacate this Court's March 13, 2008 orders granted.

In the Matter of TOWN OF MONTAUK, Appellant, v GEORGE E. PATAKI et al., Respondents.

Submitted January 28, 2008; decided April 24, 2008

Reported below, 2007 NY Slip Op 73644(U).

Motion to vacate this Court's December 18, 2007 dismissal order denied [*see* 9 NY3d 1003 (2007)].

ELAINE PACHTER, Respondent, v BERNARD HODES GROUP, INC., Appellant.

Submitted March 31, 2008; decided April 24, 2008

Motion by National Employment Lawyers Association/New York for leave to file a brief amicus curiae on consideration of the certified questions herein dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.23 [a] [1]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ELIEZER CINTRON, Appellant.

Submitted April 21, 2008; decided April 24, 2008

Reported below, 46 AD3d 353.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ISAAC DIGGINS, Appellant.

Submitted April 21, 2008; decided April 24, 2008

Reported below, 45 AD3d 266.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place,

Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHELDON ENNIS, Appellant.

Submitted March 31, 2008; decided April 24, 2008

Reported below, 41 AD3d 271.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ROBERT WADE GIBBS, Appellant.

Submitted April 14, 2008; decided April 24, 2008

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 dismissed (*see* CPL 460.30 [6]).

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TEBRUE JAMES, Appellant.

Submitted March 24, 2008; decided April 24, 2008

Reported below, 47 AD3d 506.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v LIONEL JONES, Appellant.

Submitted March 31, 2008; decided April 24, 2008

Reported below, 48 AD3d 1116.

Motion for assignment of counsel granted and David C. Schopp, Esq., the Legal Aid Bureau of Buffalo, Inc., 237 Main

Street, Suite 1602, Buffalo, New York 14203, assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JUDY KNOX, Appellant.

Submitted March 24, 2008; decided April 24, 2008

Reported below, 45 AD3d 274.

Motion for poor person relief granted.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v GEORGE QUINONES, Appellant.

Submitted April 21, 2008; decided April 24, 2008

Reported below, 45 AD3d 874.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HIRAM RIVERA, Appellant.

Submitted April 21, 2008; decided April 24, 2008

Reported below, 41 AD3d 1237.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ANDRE SMITH, Appellant.

Submitted March 31, 2008; decided April 24, 2008

Reported below, 39 AD3d 773.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. JUSTO RICHARDS, Appellant, v CALVIN WEST, as Superintendent of Elmira Correctional Facility, Respondent.

In the Matter of JUSTO RICHARDS, Appellant, v CALVIN WEST, as Superintendent of Elmira Correctional Facility, Respondent.

Submitted February 19, 2008; decided April 24, 2008

Reported below, 2008 NY Slip Op 62032(U), 62033(U).

On the Court's own motion, appeal dismissed, without costs, upon the ground that the orders appealed from do not finally determine the proceedings within the meaning of the Constitution. Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of the Arbitration between STATE OF NEW YORK OFFICE OF MENTAL HEALTH, Respondent, and NEW YORK STATE CORRECTIONAL OFFICERS AND POLICE BENEVOLENT ASSOCIATION, INC., et al., Appellants.

Submitted February 25, 2008; decided April 24, 2008

Reported below, 46 AD3d 1269.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

PETER MARC STERN, Respondent, v ANDREW LAVOOTT BLUESTONE, Appellant.

Submitted April 7, 2008; decided April 24, 2008

Reported below, 47 AD3d 576.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of INJAH TAFARI, Appellant, v DONALD SELSKY, as
Director of Special Housing and Inmate Disciplinary
Programs, Respondent.

Submitted February 4, 2008; decided April 24, 2008

Reported below, 45 AD3d 1139.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]). Motion for poor person relief dismissed as academic.

In the Matter of GLENN O. VICKERS, Admitted as GLENN OSRIC
VICKERS, a Suspended Attorney.

Submitted February 25, 2008; decided April 24, 2008

Reported below, 2007 NY Slip Op 87650(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution. Motion
for poor person relief dismissed as academic.

[890 NE2d 179, 860 NYS2d 417]

LAMONT WILSON, Respondent, et al., Plaintiff, v GALICIA CON-
TRACTING & RESTORATION CORP. et al., Defendants, and
SAFWAY STEEL PRODUCTS, INC., Appellant.

Argued March 18, 2008; decided April 29, 2008

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered January 16, 2007. The Appellate Division (1) modified, on the facts and in the exercise of discretion, a judgment of the Supreme Court, Kings County (Mark I. Partnow, J.), which had awarded the plaintiff damages in the principal sums of \$300,000 for past pain and suffering and \$750,000 for future pain and suffering, and (2) as modified, remitted to Supreme Court for entry of an amended judgment. The modification consisted of reducing the damages award for past pain and suffering from the sum of \$300,000 to \$200,000 and the damages award for future pain and suffering from the sum of \$750,000 to \$500,000.

Wilson v Galicia Contr. & Restoration Corp., 36 AD3d 695, affirmed.

HEADNOTE

Appeal — Raising Issue for First Time on Appeal — Validity of Judgment Entered after Inquest

In a personal injury action wherein the trial court struck defendant's answer for failure to comply with discovery demands and orders, the Appellate Division properly affirmed a judgment in favor of plaintiff after an inquest on damages. Defendant's contention on appeal that CPLR 3215 (f) rendered the judgment a nullity was not preserved for review. Defendant, represented by counsel, offered no valid reason for ignoring the discovery demands and court orders and failed to raise this argument in prior motions. The courts below correctly held that defendant was precluded from introducing evidence at the inquest tending to defeat the cause of action, and thus defendant was deemed to admit all traversable allegations in the complaint, including the allegations of liability.

APPEARANCES OF COUNSEL

Mauro Goldberg & Lilling LLP, Great Neck (*Kenneth Mauro* and *Anthony F. DeStefano* of counsel), and *Ahmuty, Demers & McManus* for appellant.

Pollack, Pollack, Isaac & DeCicco, LLP, New York City (*Brian J. Isaac* and *Michael H. Zhu* of counsel), and *Law Firm of Allen L. Rothenberg* (*Marc J. Rothenberg* of counsel) for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

On June 18, 1999, at about 7:30 P.M., 16-year-old plaintiff Lamont Wilson allegedly was walking under scaffolding assembled by defendant Safway Steel Products when he saw the scaffolding shake and looked up, and a piece of material fell into his left eye. Plaintiff told hospital personnel that he thought that he had been struck by broken glass. Doctors surgically removed a small piece of metal that had imbedded in his eye and permanently damaged his retina.

On April 6, 2000, plaintiff filed suit against Safway and six other defendants, asserting various theories of liability. Over the ensuing months, Safway and certain other defendants failed to comply with plaintiff's formal and informal discovery demands, and with the terms of a preliminary conference order dated June 25, 2001. Ultimately, on plaintiff's application, the court issued a self-executing conditional order directing

defendants to comply by July 1, 2002 or their answers would be stricken.

Having failed to comply, Safway's answer was stricken as of July 1, 2002. This left unrebutted plaintiff's assertion that the cause of plaintiff's injury was "a dangerous, defective and/or unsafe condition" existing on defendant's premises. In early August 2002, at the request of a codefendant, plaintiff produced the object that had been removed from his eye; that defendant's expert opined that the object appeared to be a lead air-gun pellet that was "fired into his eye by the power of an air gun." Plaintiff thereafter discontinued his claims against the other defendants with prejudice, and by order dated June 18, 2003, the court granted his motion for an inquest against Safway, denying Safway's motion to dismiss.

Over the next two years, Safway unsuccessfully moved three times to vacate the order striking its answer and the order granting the inquest. First, Safway attempted to show a "justifiable excuse" for its conduct. The Appellate Division affirmed denial of that motion, concluding that Safway failed to offer "any acceptable reason for its two-year long pattern of failure to respond to discovery demands, court orders, or the conditional order" (8 AD3d 560). Next, Safway alleged that the underlying claim was fraudulent. The trial court determined that its decision to strike Safway's answer and allow plaintiff to proceed to an inquest was "wholly unrelated and in no manner the result of" alleged fraud but resulted solely from Safway's "own actions or inactions." Third, Safway claimed that the self-executing order was void ab initio due to a stay in another matter; the court denied that motion as well, finding the stay inapplicable. After the inquest and entry of judgment, the Appellate Division reduced the award but otherwise affirmed. We now affirm.

In our Court, Safway contends that CPLR 3215 (f) renders the judgment a nullity. Safway—who was represented throughout by counsel, and offered no valid reason for ignoring the discovery demands and court orders—failed to raise this argument in its prior motions.* As we have previously made clear, the requirement of preservation is not simply a meaningless technical barrier to review (*see Bingham v New York City Tr. Auth.*, 99 NY2d 355, 359 [2003]). Here, for example, had defendant earlier raised CPLR 3215 (f), plaintiff might well have filed

* Defendant's alternative argument in our Court—a purported violation of the Disciplinary Rules by plaintiff's counsel—is similarly unpreserved.

the documents referenced in that section; the affidavit or verified complaint specified in CPLR 3215 (f) “need only allege enough facts to enable a court to determine that a viable cause of action exists” (*Woodson v Mendon Leasing Corp.*, 100 NY2d 62, 71 [2003]). Today, nearly a decade after the incident, and years after dismissal of all codefendants with prejudice, the potential harm to plaintiff from reversing the consequence of Safway’s counseled course of action is manifest.

As the conditional order was self-executing and appellant’s “failure to produce [requested] items on or before the date certain” rendered it “absolute” (see *Zouev v City of New York*, 32 AD3d 850, 850 [2d Dept 2006]; *Lopez v City of New York*, 2 AD3d 693, 693 [2d Dept 2003]), the courts below correctly held that defendant was precluded from introducing any evidence at the inquest “tending to defeat the plaintiff’s cause of action” (*Rokina Opt. Co. v Camera King*, 63 NY2d 728, 730 [1984]; see Weinstein-Korn-Miller, NY Civ Prac ¶ 3126.03 [a conditional order “will preclude proof as to matters not furnished unless the delinquent party provides the particulars within the time frame specified in the order”]). As a result, Safway was deemed to admit “all traversable allegations in the complaint, including the basic allegation of liability” (*Curiale v Ardra Ins. Co.*, 88 NY2d 268, 279 [1996]).

Addressing the dissent, we agree that courts must protect the integrity of the judicial process and ensure that plaintiffs do not secure money judgments based on fraudulent claims. We do, however, assure those objectives by insisting on the parties’ compliance with statutes and orders throughout the litigation process, particularly when both sides are represented by counsel engaged to make, and respond to, arguments for their clients. The objectives of honesty and integrity are not furthered when the Court goes outside applicable law to itself raise arguments not preserved in the trial court. Indeed, the dissent’s major point—noncompliance with CPLR 5015 (a) (3)—has not even been presented to us.

For this Court now to do the “lawyering” is problematic for additional reasons. Here, for example, there is nothing nefarious in the 16-year-old’s statement to hospital personnel immediately after the incident that he thought a piece of broken glass had fallen into his eye when he looked up. He did not actually know what had fallen into his eye; there is no “new theory” (dissenting mem at 832). Nor does the opinion of another defendant’s expert establish that a metal pellet was fired

from an air gun (dissenting mem at 831); plaintiff's treating physician at the inquest acknowledged that the injury also could have been caused by a small metal object dropping from above. Finally, the dissent's solution—again not sought by Safway before us—overlooks the unfairness to plaintiff of remittal for a hearing at this point, long after the accident and dismissal of all other defendants.

PIGOTT, J. (dissenting). I respectfully dissent. In my view, Supreme Court abused its discretion by failing to consider the compelling evidence that plaintiff's negligence cause of action against Safway was fraudulent. Although Safway's answer was properly stricken due to its failure to comply with discovery demands, shortly thereafter, it presented proof that plaintiff's eye injury was caused by an air gun pellet, and not from a falling object emanating from its scaffold, as was alleged in the complaint. Such evidence should have been considered because courts must protect the integrity of the judicial process and ensure that undeserving plaintiffs are not awarded monetary judgments predicated upon fraudulent claims.

According to plaintiff's attorney-verified complaint (i.e., not sworn to by plaintiff or his guardian), plaintiff was injured "as a result of a dangerous, defective and/or unsafe condition existing upon [the] . . . construction site when a piece of material was caused to fall from a scaffold or an area above" striking him in the eye. Safway's answer was stricken after it failed to comply with plaintiff's discovery demands and a conditional preclusion order. A short time later, plaintiff produced the "object" that hit him in the eye. The object was examined by Joseph F. Dyro, a certified clinical engineer with a Ph.D. in biomedical electronics engineering from the University of Pennsylvania, who opined that it was "equivalent in appearance, weight and dimensions to a 0.177 caliber pointed lead air-gun pellet." Based upon the nature of plaintiff's injury, the expert concluded that the object was fired directly into plaintiff's eye and did not fall from the scaffold.

In response to plaintiff's motion for an inquest on damages, Safway cross-moved to dismiss the complaint, arguing that the object that caused plaintiff's injury did not come from its scaffold. Notably, during the pendency of this motion, after the air gun pellet was produced and examined, plaintiff discontinued the action against all nondefaulting defendants. Supreme Court nevertheless granted plaintiff's motion for an inquest against Safway and denied Safway's cross motion to dismiss the

complaint. The court concluded that Safway, through its default in responding to plaintiff's discovery demands, admitted the traversable allegations in the complaint regarding liability and causation and the expert opinion had "no bearing on the issue of plaintiff's right to an immediate trial or inquest on damages."*

Safway subsequently moved pursuant to CPLR 5015 (a) (3) to vacate the order granting plaintiff's motion for an inquest on the ground of fraud. Again, Safway argued that the evidence revealed that an air gun pellet, not an object falling from Safway's scaffold, caused plaintiff's injuries. Supreme Court denied Safway's motion, concluding that its prior order setting the matter down for an inquest "was a proper exercise of the court's discretion, unaffected by, wholly unrelated to, and in no manner the result of the fraud alleged by Safway to have been perpetrated by [plaintiff] concerning the issue of the manner in which . . . plaintiff was actually injured." Instead, the court noted that its order was premised on Safway's disclosure noncompliance. The court concluded that it lacked the authority to vacate the order pursuant to CPLR 5015 (a) (3).

At the inquest, plaintiff recounted that, while standing under the scaffold with two friends, he saw the scaffold shake, looked up and an object fell into his eye. On cross-examination, he denied being struck with an air gun pellet. However, according to the medical records admitted at the inquest, plaintiff initially told hospital personnel that a piece of a glass bottle ricocheted off a wall hitting him in the left eye. Nevertheless, plaintiff testified to his new theory that a piece of metal fell from the scaffold. The court awarded plaintiff judgment in excess of \$1 million for past and future pain and suffering.

The Appellate Division modified the judgment but only by reducing the amount of the award to \$700,000. As for Safway's fraud argument, the Court held that Supreme Court properly found that Safway failed to demonstrate that plaintiff fraudulently procured the order directing an inquest. Specifically, it noted that "Safway was attempting to present a defense where it otherwise would not be entitled to, as its answer was stricken. There was no evidence that the plaintiffs' complaint was fraudulent or that the plaintiffs attempted to mislead the court in an effort to procure the judgment" (36 AD3d 695, 697 [2007]).

* Although Safway did not object, plaintiff never submitted a verified complaint or an affidavit of merit in his motion to proceed to a damages inquest or at the inquest itself, thus failing to offer "proof of the facts constituting the claim," as required by CPLR 3215 (f).

As the majority notes, Safway's principal argument to this Court—that plaintiff's failure to comply with CPLR 3215 (f) renders the default judgment a nullity—is unpreserved. Although not argued here, Safway asserted in the courts below that its default should have been vacated pursuant to CPLR 5015 (a) (3) on the ground of fraud. Regardless of whether the issue was argued here, this Court should reach the issue because courts have a fundamental duty to ensure that judgments are not procured by fraud.

It is well settled that courts possess the inherent authority to ensure the integrity of the judicial process and guard against the procurement of judgments based on fraud (*see Matter of Lyons v Goldstein*, 290 NY 19, 25 [1943]; *Matter of Holden*, 271 NY 212, 218 [1936]; *Furman v Furman*, 153 NY 309, 314 [1897]). Pursuant to CPLR 5015 (a) (3), “[t]he court which rendered a judgment or order may relieve a party from it upon such terms as may be just . . . upon the ground of . . . fraud, misrepresentation, or other misconduct of an adverse party.”

Here, in my view, the evidence of fraud in this case is compelling and should not be ignored by our courts merely because Safway failed to respond to discovery requests. The majority correctly notes that one of the ways the objective of protecting against the procurement of judgments based on fraudulent claims is accomplished is by insisting on compliance with statutes and orders throughout the litigation process. However, the law also provides an additional safeguard against fraudulent judgments, i.e., a CPLR 5015 (a) (3) motion, even where an answer is stricken due to a defendant's failure to comply with a discovery order. Here, Safway made such a motion at Supreme Court before the inquest, and thus, the issue was properly preserved below.

First, Supreme Court erred in concluding that it lacked the authority to vacate its order directing an inquest under CPLR 5015 (a) (3). As we have previously recognized, “the fraud forming the basis for a CPLR 5015 motion may be either extrinsic or intrinsic” (*Oppenheimer v Westcott*, 47 NY2d 595, 603 [1979], citing Third Prelim Rep of Advisory Comm on Prac & Pro, at 204 [1959]; *see* Weinstein-Korn-Miller, NY Civ Prac ¶ 5015.09).

Next, in its CPLR 5015 (a) (3) motion, Safway presented expert evidence that clearly supports its claim that plaintiff's eye injury was caused by a lead air gun pellet and not by a glass bottle or an object falling from Safway's scaffold. However, Supreme Court, in deciding the motion, refused to consider the

strong evidence of fraud, concluding that its previous order directing an inquest against Safway stemmed from Safway's discovery noncompliance, and thus, that order itself was not procured by plaintiff's alleged fraud. But the claim is not that plaintiff committed fraud in obtaining the order directing an inquest, but rather that he procured a \$700,000 judgment from the court based on the fraudulent claim set forth in his complaint that he was injured from a "piece of material" falling from Safway's scaffold. Based on this contrary evidence, to date unaddressed by plaintiff, a serious question has been raised that plaintiff has perpetrated a fraud on the court by procuring a judgment premised upon a fraudulent legal claim against Safway. Thus, in my view, Supreme Court erred in holding that it could not consider the evidence of fraud on Safway's CPLR 5015 (a) (3) motion. Accordingly, I would reverse the order of the Appellate Division and remit the matter to Supreme Court for reconsideration of Safway's CPLR 5015 (a) (3) motion, and if deemed necessary, conduct a hearing whereby Safway would be permitted to attempt to prove, by the clear and convincing evidence standard, that plaintiff procured the judgment by fraud.

Chief Judge KAYE and Judges CIPARICK, GRAFFEO, READ and JONES concur; Judge PIGOTT dissents and votes to reverse in an opinion in which Judge SMITH concurs.

Order affirmed, with costs, in a memorandum.

JULIE A. ALBERTS, Appellant, v JON S. COOK et al., Defendants,
and PV HOLDING CORPORATION, Doing Business as BUDGET
RENT A CAR, Respondent. UNITED STATES OF AMERICA, Inter-
venor.

Submitted April 28, 2008; decided April 29, 2008

Appeal transferred, without costs, by the Court of Appeals, sua sponte, to the Appellate Division, Fourth Department, upon the ground that the sole constitutional question presented on this appeal is not substantial (*see Gerzof v Gulotta*, 40 NY2d 825 [1976]).

Chief Judge KAYE taking no part.

BANK OF AMERICA, N.A., USA, Respondent, v RESA R. FRIEDMAN,
Appellant.

Submitted February 25, 2008; decided April 29, 2008

Reported below, 44 AD3d 696.

Motion for reargument of motion for leave to appeal denied
[see 9 NY3d 1016 (2008)].

RAFFAELE CARE, Plaintiff, v FAZIO NAZZARENA, Respondent. GIO-
VANNINA DIZENZO, Nonparty Appellant.

Submitted March 3, 2008; decided April 29, 2008

Reported below, 41 AD3d 406.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

ELEANOR DUFFY, Appellant, v JAMES M. VOGEL et al., Respon-
dents.

Submitted April 4, 2008; decided April 29, 2008

Reported below, 49 AD3d 22.

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that the order appealed from does not
finally determine the action within the meaning of the Consti-
tution.

DARREN GARY, Appellant, v STATE OF NEW YORK, Respondent.

Submitted February 25, 2008; decided April 29, 2008

Reported below, 2008 NY Slip Op 61554(U).

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

SHARON GRAHAM, Appellant, v RAYON S. DUNKLEY, Defendant,
and NILT, INC., Respondent. UNITED STATES OF AMERICA,
Intervenor.

Submitted April 28, 2008; decided April 29, 2008

Reported below, 50 AD3d 55.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

Chief Judge KAYE taking no part.

In the Matter of DORIS LUMPKIN, Appellant, v NEW YORK STATE
DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted April 7, 2008; decided April 29, 2008

Reported below, 2007 NY Slip Op 82658(U).

Motion for reargument of motion for leave to appeal denied
[see 10 NY3d 739 (2008)].

In the Matter of MICHAEL McC., Respondent, v MANUELA A.,
Appellant.

Submitted February 25, 2008; decided April 29, 2008

Reported below, 48 AD3d 91.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the proceeding within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. WAHEEM ALLAH,
Appellant, v MICHAEL R. AMBRECHT et al., Respondents.

Submitted April 7, 2008; decided April 29, 2008

Reported below, 37 AD3d 211.

Motion for reargument of motion for leave to appeal denied
[see 10 NY3d 703 (2008)].

THE PEOPLE OF THE STATE OF NEW YORK ex rel. AJUA TEMPLE,
Appellant, v WARDEN et al., Respondents.

Submitted March 3, 2008; decided April 29, 2008

Reported below, 2007 NY Slip Op 87523(U).

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

SMD CAPITAL GROUP LLC et al., Respondents, v EPR CAPITAL LLC et al., Appellants.

Submitted February 25, 2008; decided April 29, 2008

Reported below, 45 AD3d 314.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

WAYNE SWARTZ et al., Appellants, v CITY OF CORNING et al., Respondents.

Submitted February 25, 2008; decided April 29, 2008

Reported below, 46 AD3d 1364.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

KAREN L. VAN NOSTRAND, Respondent, v ROSARIO FROEHLICH et al., Appellants.

Submitted April 14, 2008; decided April 29, 2008

Reported below, 44 AD3d 54.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the Appellate Division order appealed from, which reversed a Supreme Court order granting a motion to amend a prior final judgment and denied the motion, does not finally determine the action within the meaning of the Constitution. The effect of the Appellate Division's reversal of Supreme Court's grant of the motion to amend the judgment is to place the parties back precisely where they were under the final determination.
